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Agencies in this issue—

Agricultural Stabilization and Conservation Service
Agriculture Department
Atomic Energy Commission
Civil Aeronautics Board
Commodity Credit Corporation
Delaware River Basin Commission
Federal Aviation Agency
Federal Communications Commission
Federal Power Commission
Fish and Wildlife Service
Food and Drug Administration
Housing and Urban Development Department
Interior Department
Interstate Commerce Commission
Land Management Bureau
Panama Canal
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Small Business Administration

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THE NATIONAL ARCHIVES OF THE UNITED STATES
LITTERA SCRIPTA MANET
1934

Just Released

LIST OF CFR SECTIONS AFFECTED

January–August 1966

(Codification Guide)

The List of CFR Sections Affected is published monthly on a cumulative basis. It lists by number the titles, parts, and sections of the Code of Federal Regulations amended or otherwise affected by documents published in the FEDERAL REGISTER during 1966. Entries indicate the exact nature of all changes effected. This cumulative list of CFR sections affected is supplemented by the current lists of CFR parts affected which are carried in each daily FEDERAL REGISTER.

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(Codification Guide)

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Title 7—AGRICULTURE

Chapter VII—Agricultural Stabilization and Conservation Service (Agricultural Adjustment), Department of Agriculture

SUBCHAPTER B—FARM MARKETING QUOTAS AND ACREAGE ALLOTMENTS

[Amdt. 8]

PART 729—PEANUTS

Subpart—Allotment and Marketing Quota Regulations for Peanuts of the 1963 and Subsequent Crops

MISCELLANEOUS AMENDMENTS

Basis and purpose. The amendments contained herein are issued pursuant to the Agricultural Adjustment Act of 1938, as amended (7 U.S.C. 1281 et seq.), to amend the allotment and marketing quota regulations for peanuts of the 1963 and subsequent crops (27 F.R. 11920; 28 F.R. 11811; 29 F.R. 7801, 7983, 13027, 16185; 30 F.R. 2589, 11345; 31 F.R. 6957).

The amendment (1) provides that in counties approved for compliance certification, the final acreage of peanuts on a farm will be the acreage determined in accordance with Part 718 instead of this part of this chapter, (2) provides that an excess penalty marketing card will be issued to a within quota farm if the certification is not timely filed, and (3) announces the basic penalty rate for the 1966 crop of peanuts. The marketing of peanuts of the 1966 crop is now underway and it is, therefore, essential that the basic penalty rate for the 1966 crop be announced immediately. Moreover, provisions for determination of compliance by certification have been published under Part 718; and determination of the basic penalty rate for peanuts is the result of a mathematical calculation provided for by statute (7 U.S.C. 1359). Accordingly it is hereby determined and found that compliance with the public notice, procedure, and effective date requirements of the Administrative Procedure Act (5 U.S.C. 1003) is impractical and contrary to the public interest and this amendment shall become effective upon the date of filing with the Director, Office of the Federal Register.

1. Section 729.1442 is amended by amending the introductory paragraph to read as follows:

§ 729.1442 Determination of final acreage.

In certification counties, the final acreage of peanuts on a farm shall be the acreage determined in accordance with Part 718 of this chapter. In all other counties the final acreage shall be the acreage from which peanuts are picked or threshed as determined and adjusted under provisions of this section. In the determination of final acreage any necessary land measurements shall be made in accordance with Part 718 of this chapter.

* * * * *

2. Section 729.1446(d) is amended by amending the last sentence to read as follows:

§ 729.1446 Issuance of marketing cards.

* * * * *

(d) * * *

For federally-owned land an excess penalty card showing "zero" as the converted penalty rate shall be issued if the final acreage on the farm is within the effective farm allotment but is in excess of the acreage permitted by the lease or operating agreement. In certification counties, an excess penalty card showing "zero" as the converted penalty rate shall be issued to a farm on which the final acreage does not exceed the effective farm allotment if the producer fails to furnish a certification within the time prescribed in Part 718 of this chapter.

3. Section 729.1457 is amended by adding a new paragraph (e) to read as follows:

§ 729.1457 Penalty rate.

* * * * *

(e) The basic support price for peanuts for the marketing year beginning August 1, 1966, and ending July 31, 1967, is $227 per ton or 11.3 cents per pound and; therefore, the basic penalty rate for the 1966 crop of peanuts is 8.5 cents per pound.

(Secs. 358, 359, 375, 55 Stat. 88, as amended, 90, as amended, 52 Stat. 66, as amended; 7 U.S.C. 1358, 1359, 1375)

Effective date. Date of filing with the Director, Office of the Federal Register.

Signed at Washington, D.C., on September 20, 1966.

H. D. GODFREY,
Administrator, Agricultural Stabilization and Conservation Service.

[F.R. Doc. 66-10441; Filed, Sept. 22, 1966; 8:47 a.m.]

Chapter VIII—Agricultural Stabilization and Conservation Service (Sugar), Department of Agriculture

SUBCHAPTER B—SUGAR REQUIREMENTS AND QUOTAS

[Sugar Reg. 815.7, Amdt. 3]

PART 815—ALLOTMENT OF DIRECT-CONSUMPTION PORTION OF MAINLAND SUGAR QUOTA FOR PUERTO RICO

Calendar Year 1966

Basis and purpose. This amendment is issued under section 205(a) of the Sugar Act of 1948, as amended (hereinafter called the "Act") for the purpose of amending Sugar Regulation 815.7 (31 F.R. 74, 6860, 10665), which established allotments of the direct-consumption portion of the 1966 mainland quota for Puerto Rico.

This amendement of S.R. 815.7 is necessary to give effect to the direct-consumption portion of the 1966 mainland quota for Puerto Rico amounting to 154,875 short tons, raw value, as established in Sugar Regulation 811, Amendment 9 (31 F.R. 11711). That quantity is 1,500 tons greater than the 153,375 short tons, raw value, previously allotted.

Findings heretofore made by the Secretary in the course of this proceeding (31 F.R. 74) provide that this order shall be revised without further notice or hearing for the purpose indicated above and such findings set forth the procedure for the revision of allotments.

Accordingly, allotments are herein established on the basis of and consistent with such findings.

Order. Pursuant to the authority vested in the Secretary of Agriculture by section 205(a) of the Act, and in accordance with paragraph (c) of § 815.7 of this chapter, it is hereby ordered that paragraph (a) of § 815.7 be amended to read as follows:

§ 815.7 Allotment of the direct-consumption portion of mainland sugar quota for Puerto Rico for the calendar year 1966.

(a) *Allotments.* The direct-consumption portion of the 1966 mainland sugar quota for Puerto Rico, amounting to 154,875 short tons, raw value, is hereby allotted as follows:

Allottee	*Direct-consumption allotment (short tons, raw value)*
Central Aguirre Sugar Co., a trust	6,449
Central Roig Refining Co	21,586
Central San Francisco	1,351
Puerto Rican American Sugar Refinery, Inc	100,975
Western Sugar Refining Co	24,484
Liquid sugar reserve for persons other than named above	30
Total	154,875

* * * * *

(Sec. 403, 61 Stat. 932; 7 U.S.C. 1153, secs. 205, 207, 209; 61 Stat. 926, 927, 928; 7 U.S.C. 1115, 1117, 1119)

Effective date. Allotments established in this order for all allottees are larger than the allotments established in S.R. 815.7 (31 F.R. 10665). To afford adequate opportunity to plan and to market the additional quantities of sugar in an orderly manner, it is imperative that this amendment becomes effective as soon as possible. Accordingly, it is hereby determined and found that compliance with the 30-day effective date requirement of the Administrative Procedure Act (60 Stat. 237) is impracticable and contrary to the public interest and, consequently, the amendment made herein shall become effective when published in the FEDERAL REGISTER.

Signed at Washington, D.C., this 20th day of September 1966.

H. D. GODFREY,
Administrator, Agricultural Stabilization and Conservation Service.

[F.R. Doc. 66-10440; Filed, Sept. 22, 1966; 8:47 a.m.]

Chapter XIV—Commodity Credit Corporation, Department of Agriculture

SUBCHAPTER B—LOANS, PURCHASES, AND OTHER OPERATIONS

[CCC Grain Price Support Regs., 1966-Crop Soybean Supp.]

PART 1421—GRAINS AND SIMILARLY HANDLED COMMODITIES

Subpart—1966-Crop Soybean Loan and Purchase Program

Correction

In F.R. Doc. 66-10044 appearing in the issue for Thursday, September 15, 1966, at page 12051, the following corrections are made in § 1421.2968:

1. In paragraph (a) in the third column under Minnesota, "Fairbault" should read "Faribault".

2. In paragraph (c)(2) the heading "pounds:" should appear above the left-hand column of data.

3. In paragraph (c)(3) the heading "percent:" should appear above the left-hand column of data.

Title 43—PUBLIC LANDS: INTERIOR

Chapter II—Bureau of Land Management, Department of the Interior

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 4079]

[Misc. 1825382]

NEVADA

Withdrawal for Desert National Wildlife Range; Revocation of Executive Order No. 7373

Correction

In F.R. Doc. 66-9528 appearing in the issue for Thursday, September 1, 1966, at page 11547, following the land description in paragraph 1 and immediately preceding paragraph 2, insert the following land description:

T. 11 S., R. 62 E.,
Sec. 1, W½W½;
Secs. 2 to 36, inclusive.
Tps. 12, 12½, 13, 14, 15, 16, and 17 S., R. 62 E.
T. 18 S., R. 62 E.,
Sec. 1 to 31, inclusive.
Tps. 9 to 13, inclusive., 14 and 15 S., R. 54 E., located within Lincoln and Clark Counties.
Tps. 9, 10, 11, 12, 13, 14, 15 S., R. 55 E.
Tps. 9, 10, 11, 12, 13, 14, and 15 S., R. 55½ E.
Tps. 9, 10, 11, 12, 13, 14, and 15 S., R. 56 E.
Tps. 9, 10, 11, 12, 13, 14, and 15 S., R. 57 E.
T. 16 S., R. 57 E.,
Secs. 1 to 12, inclusive.
Tps. 9, 10, 11, 12, 13, 14, and 15 S., R. 58 E.
T. 16 S., R. 58 E.,
Secs. 1 to 9, inclusive;
Sec. 10, W½;
Sec. 14, W½;
Secs. 15 to 23, inclusive.;
Secs. 25, 26, 27, 34, 35 and 36.
Tps. 9, 10, 11, 12, 13, and 14 S., R. 59 E.
T. 16 S., R. 59 E.,
Sec. 31, W½, SE¼.
T. 17 S., R. 59 E.,
Sec. 5, W½;
Sec. 6;
Sec. 7, NW¼.
T. 18 S., R. 62 E.,
Secs. 32 to 36, inclusive.

The areas described aggregate approximately 1,583,000 acres in Clark and Lincoln Counties.

Title 50—WILDLIFE AND FISHERIES

Chapter I—Bureau of Sport Fisheries and Wildlife, Fish and Wildlife Service, Department of the Interior

PART 32—HUNTING

Charles Sheldon Antelope Range, Nev.

The following special regulations are issued and are effective on date of publication in the FEDERAL REGISTER.

§ 32.22 Special regulations; upland game; for individual wildlife refuge areas.

NEVADA

CHARLES SHELDON ANTELOPE RANGE

The public hunting of upland game on the Charles Sheldon Antelope Range, Nev., is permitted for the following species on the dates listed: Sage grouse—on September 25, 1966, only; chukar, Hungarian partridge, and quail—October 22, 1966, through January 31, 1967; cottontail rabbits—September 24, 1966, through January 31, 1967; all dates inclusive, but only on the area designated by signs as open to hunting. This open area, comprising 365,000 acres, is delineated on a map available at refuge headquarters, Lakeview, Oreg., and from the Regional Director, Bureau of Sport Fisheries and Wildlife, 730 Northeast Pacific, Portland, Oreg. 97208.

Hunting shall be in accordance with all applicable State regulations subject to the following special condition:

(1) Camping will be permitted at designated areas only.

The provisions of this special regulation supplement the regulations which govern hunting on wildlife refuge areas generally which are set forth in Title 50, Code of Federal Regulations, Part 32, and are effective through January 31, 1967.

URBAN C. NELSON,
Acting Regional Director, Bureau of Sport Fisheries and Wildlife.

SEPTEMBER 16, 1966.

[F.R. Doc. 66-10418; Filed, Sept. 22, 1966; 8:45 a.m.]

PART 32—HUNTING

Fallon National Wildlife Refuge, Nev.

The following special regulations are issued and are effective on date of publication in the FEDERAL REGISTER.

§ 32.22 Special regulations; upland game; for individual wildlife refuge areas.

NEVADA

FALLON NATIONAL WILDLIFE REFUGE

The public hunting of ring-necked pheasants and quail on the Fallon National Wildlife Refuge, Nev., is permitted from November 6 through 13, 1966; the hunting of chukar and Hungarian partridge is permitted from October 22, 1966, through January 31, 1967; the hunting of cottontail rabbits is permitted from September 24, 1966, through January 31, 1967; but only on the area designated by signs as open to hunting. This open area, comprising 9,600 acres, is delineated on a map available at refuge headquarters, Fallon, Nev., and from the Regional Director, Bureau of Sport Fisheries and Wildlife, 730 Northeast Pacific, Portland, Oreg. 97208.

Hunting shall be in accordance with all applicable State regulations.

The provisions of this special regulation supplement the regulations which govern hunting on wildlife refuge areas generally which are set forth in Title 50, Code of Federal Regulations, Part 32, and are effective through January 31, 1967.

URBAN C. NELSON,
Acting Regional Director, Bureau of Sport Fisheries and Wildlife.

SEPTEMBER 16, 1966.

[F.R. Doc. 66-10419; Filed, Sept. 22, 1966; 8:45 a.m.]

PART 32—HUNTING

Stillwater Wildlife Management Area, Nev.

The following special regulations are issued and are effective on date of publication in the FEDERAL REGISTER.

§ 32.22 Special regulations; upland game; for individual wildlife refuge areas.

NEVADA

STILLWATER WILDLIFE MANAGEMENT AREA

The public hunting of ring-necked pheasants and quail on the Stillwater Wildlife Management Area, Nev., is permitted from November 6 through 13, 1966; the hunting of chukar and Hungarian partridge is permitted from October 22, 1966, through January 31, 1967; the hunting of cottontail rabbits is permitted from September 24, 1966, through January 31, 1967, but only on the area designated by signs as open to hunting. This open area, comprising 180,430 acres, is delineated on a map available at refuge headquarters, Fallon, Nev., and from the Regional Director, Bureau of Sport Fisheries and Wildlife, 730 Northeast Pacific, Portland, Oreg. 97208.

Hunting shall be in accordance with all applicable State regulations.

The provisions of this special regulation supplement the regulations which govern hunting on wildlife refuge areas generally which are set forth in Title 50, Code of Federal Regulations, Part 32, and are effective through January 31, 1967.

URBAN C. NELSON,
Acting Regional Director, Bureau of Sport Fisheries and Wildlife.

SEPTEMBER 16, 1966.

[F.R. Doc. 66-10420; Filed, Sept. 22, 1966; 8:46 a.m.]

Title 39—POSTAL SERVICE

Chapter I—Post Office Department

PART 114—TREATMENT OF INCOMING POSTAL UNION MAIL

PART 122—INCOMING PARCELS

Storage Charges on International Mail Packages; Correction

In F.R. Doc. 66-10191 appearing at page 12405 in the issue for Saturday, September 17, 1966, the effective date in the second paragraph should read October 17, 1966, instead of October 15, 1966, as it appeared.

(R.S. 161, as amended; 5 U.S.C. 22, 39 U.S.C. 501, 505)

TIMOTHY J. MAY,
General Counsel.

SEPTEMBER 20, 1966.

[F.R. Doc. 66-10425; Filed, Sept. 22, 1966; 8:46 a.m.]

Title 14—AERONAUTICS AND SPACE

Chapter I—Federal Aviation Agency

SUBCHAPTER C—AIRCRAFT

[Docket No. 7621; Amdt. No. 21-11]

PART 21—CERTIFICATION PROCEDURES FOR PRODUCTS AND PARTS

Export Airworthiness Approval

The purpose of this amendment to Part 21 is to clarify the requirements of § 21.339 governing the issuance of special export airworthiness approvals for aircraft.

The United States has concluded reciprocal agreements with a number of foreign countries governing the import and export of aeronautical products. These agreements provide for the mutual validation or acceptance of export certificates of airworthiness issued for aeronautical products which are manufactured in and meet the airworthiness requirements of the country of export and any special requirements of the importing country.

Section 21.339 provides for the issuance of special export certificates of airworthiness for aircraft located in the United States that are to be flown to various foreign countries for the purpose of demonstrating the aircraft to prospective purchasers. Under this regulation an export certificate of airworthiness appropriate for validation or acceptance in any of the foreign countries involved may be issued prior to departure of the aircraft from the United States if, among other things, the special requirements of each of the prospective importing countries are met.

While the special requirements of some of the foreign countries with which the United States has reciprocal agreements specifically require that imported aircraft comply with certain of the airworthiness standards of those countries, the majority of the special requirements merely involve requests for various documents, information, and materials related to the imported aircraft, such as flight manuals, logbooks, and maintenance, overhaul and repair manuals.

In this connection, recent inquiries from certain U.S. manufacturers concerning § 21.339 indicate that some confusion exists as to whether the Agency intended to require an applicant for a special export certificate of airworthiness for an aircraft to furnish each of the prospective importing countries with the various documents, information, and materials identified in their special requirements. These manufacturers have requested that the regulation be clarified in this respect.

As previously noted, the various reciprocal agreements provide for the mutual validation of export certificates of airworthiness issued for products which are manufactured in and meet the airworthiness requirements of the country of export and any special requirements of the importing country. Since the importing country is not known at the time an application for a special export certificate is filed, the Agency must necessarily determine that the applicant can meet the special requirements of each of the prospective importing countries at that time. It was not intended, however, that an applicant must furnish each of the prospective importing countries with the documents, information, and material specified in their individual special requirements, but merely that the applicant show that insofar as documents, information, and materials are involved, he can meet the special requirements of any of the countries that might subsequently import the aircraft. On the other hand, once a special export certificate of airworthiness is issued, the holder of the certificate has the responsibility under other provisions of the regulations to forward to the air authority of the importing country the documents, information, and material specified in the special requirements of that country.

For the foregoing reasons, the Agency considers it appropriate to amend § 21.339 to make it clear that an applicant for a special export certificate of airworthiness need only show that he has the documents, information, and material necessary to meet the special requirement of each of the prospective importing countries.

In addition, the present provisions of paragraph (5) relate to the holders of export airworthiness approvals rather than applicants for such approvals. Since substantially the same requirements are contained in § 21.335, which sets forth the responsibilities of exporters receiving an export airworthiness approval, the requirements of paragraph (5) are unnecessary under § 21.339 and have been deleted.

Finally, the present format of § 21.339 has been corrected consistent with the format of related sections of the regulations, and the cross reference to "§ 21.32" has been changed to "§ 21.327" to correct a typographical error.

Since this is a clarifying amendment and imposes no additional burden on any person, notice and public procedure hereon are unnecessary and the amendment may be made effective on less than 30 days' notice.

In consideration of the foregoing, § 21.339 of Part 21 of the Federal Aviation Regulations is amended, effective October 22, 1966, to read as follows:

§ 21.339 Special export airworthiness approval for aircraft.

A special export certificate of airworthiness may be issued for an aircraft located in the United States that is to be flown to several foreign countries for the purpose of sale, without returning the aircraft to the United States for the certificate if—

(a) The aircraft possesses a standard U.S. certificate of airworthiness (FAA Form 1362);

(b) The owner files an application as required by § 21.327 except that items 3 and 4 of the application (FAA Form 306) need not be completed;

(c) The aircraft is inspected by the Administrator before leaving the United States and is found to comply with all the applicable requirements;

(d) A list of foreign countries in which it is intended to conduct sales demonstrations, together with the expected dates and duration of such demonstration, is included in the application;

(e) For each prospective importing country, the applicant shows that—

(1) He has met that country's special requirements, other than those requiring that documents, information, and materials be furnished; and

(2) He has the documents, information, and materials necessary to meet the special requirements of that country; and

(f) All other requirements for the issuance of a Class I export certificate of airworthiness are met.

(Secs. 313(a), 601, 603, Federal Aviation Act of 1958; 49 U.S.C. 1354, 1421, 1423)

Issued in Washington, D.C., on September 16, 1966.

WILLIAM F. MCKEE,
Administrator.

[F.R. Doc. 66-10413; Filed, Sept. 22, 1966; 8:45 a.m.]

SUBCHAPTER F—AIR TRAFFIC AND GENERAL OPERATING RULES

[Reg. Docket No. 7607; Amdt. 502]

PART 97—STANDARD INSTRUMENT APPROACH PROCEDURES

Miscellaneous Amendments

The amendments to the standard instrument approach procedures contained herein are adopted to become effective when indicated in order to promote safety. The amended procedures supersede the existing procedures of the same classification now in effect for the airports specified therein. For the convenience of the users, the complete procedure is republished in this amendment indicating the changes to the existing procedures.

As a situation exists which demands immediate action in the interests of safety in air commerce, I find that compliance with the notice and procedure provisions of the Administrative Procedure Act is impracticable and that good cause exists for making this amendment effective within less than 30 days from publication.

In view of the foregoing and pursuant to the authority delegated to me by the Administrator (24 F.R. 5662), Part 97 (14 CFR Part 97) is amended as follows:

1. By amending the following low or medium frequency range procedures prescribed in § 97.11(a) to read:

LFR STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.

If an instrument approach procedure of the above type is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of the Federal Aviation Agency. Initial approaches shall be made over specified routes. Minimum altitudes shall correspond with those established for en route operation in the particular area or as set forth below.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
Pulaski VOR	Pulaski LFR	Direct	5100	T-dn	*500-1	*500-1	*500-1
				C-dn	800-2	800-2	800-2
				S-dn	NA	NA	NA
				A-dn	NA	NA	NA

Procedure turn S side of crs, 248° Outbnd, 068° Inbnd, 5100′ within 10 miles.
Minimum altitude over facility on final approach crs, 3900′.
Crs and distance, facility to airport, 059°—3.2 miles.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 3.2 miles after passing Pulaski LFR, make a right-climbing turn to PK LFR at 5100′. Hold SW on PK LFR, 248° Outbnd, 068° Inbnd, 1-minute right turns.
*CAUTION: Mountainous terrain, 1500′ higher than airport elevation S, W, and N at 5 to 8 miles. Higher terrain at greater distances.
Use Bluefield FSS altimeter setting.
MSA within 25 miles of the facility: NE—5400′; SE—5000′; SW—4700′; NW—5100′.

City, Dublin; State, Va.; Airport name, New River Valley; Elev., 2105′; Fac. Class., SBMRAZ; Ident., PK; Procedure No. 1, Amdt. 3; Eff. date, 15 Oct. 66; Sup. Amdt. No. 2; Dated, 2 May 64

2. By amending the following automatic direction finding procedures prescribed in § 97.11(b) to read:

ADF STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.

If an instrument approach procedure of the above type is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of the Federal Aviation Agency. Initial approaches shall be made over specified routes. Minimum altitudes shall correspond with those established for en route operation in the particular area or as set forth below.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
				T-dn-1#%	300-1	300-1	200-½
				C-dn	600-1	600-1	600-1½
				A-dn	800-2	800-2	800-2

Procedure turn *S side of crs, 120° Outbnd, 300° Inbnd, 2500′ within 10 miles.
Minimum altitude over facility on final approach crs, 700′.
Crs and distance, facility to airport, 086°—1.4 miles.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 0 mile of ANI RBn, turn left, climb to 2300′ on bearing 210° within 10 miles.
NOTES:
#Left turn required on takeoff, Runway 28.
*All turns to be made on S side of crs. High terrain N.
%Departure: Northeastbound, climb on the 210° bearing of the ANI RBn within 15 miles, to cross the RBn at or above 3500′. Terrain 1000′, 2 miles N of ANI RBn. Terrain 657′, 3 miles W of ANI RBn.
MSA within 25 miles of facility: 000°-090°—4500′; 090°-180°—4700′; 180°-270°—3000′; 270°-360°—2700′.

City, Aniak; State, Alaska; Airport name, Aniak; Elev., 86′; Fac. Class., BH; Ident., ANI; Procedure No. 1, Amdt. 1; Eff. date, 15 Oct. 66; Sup. Amdt. No. Orig.; Dated, 17 Sept. 66

PROCEDURE CANCELED, EFFECTIVE 13 OCT. 1966.

City, Jackson; State, Tenn.; Airport name, McKellar Field; Elev., 432′; Fac. Class., MHW; Ident., MCR; Procedure No. 1, Amdt. 3; Eff. date, 21 Nov. 64; Sup. Amdt. No. 2; Dated, 25 July 64

PROCEDURE CANCELED, EFFECTIVE 15 OCT. 1966.

City, Las Vegas; State, Nev.; Airport name, McCarran Airport; Elev., 2171′; Fac. Class., H-SAB-Z; Ident., LAS; Procedure No. 1, Amdt. 2; Eff. date, 2 July 66; Sup. Amdt. No. 1; Dated, 4 Apr. 64

ADF STANDARD INSTRUMENT APPROACH PROCEDURE—Continued

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
AMP RBn	PI LOM	Direct	1500	T-dn	300-1	300-1	200-½
PIE VOR	PI LOM	Direct	1500	C-dn	600-1	600-1	600-1½
Frances Int	PI LOM (final)	Direct	1500	S-dn-17*	600-1	600-1	600-1
				A-dn	800-2	800-2	800-2

Radar available.
Procedure turn W side of crs, 350° Outbnd, 170° Inbnd, 1500′ within 10 miles.
Minimum altitude over facility on final approach crs, 1500′.
Crs and distance, facility to airport, 170°—4.4 miles.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 4.4 miles after passing LOM, turn right, climbing to 1600′ on crs of 270°, intercept and proceed out 220° bearing from PI LOM within 20 miles.
*Reduction not authorized.
MSA within 25 miles of facility: 000°–090°—1500′; 090°–180°—2200′; 180°–270°—1600′; 270°–360°—1600′.

City, St. Petersburg-Clearwater; State, Fla.; Airport name, St. Petersburg-Clearwater International; Elev., 11′; Fac. Class., LOM; Ident., PI; Procedure No. 1, Amdt. 11; Eff. date, 15 Oct. 66; Sup. Amdt. No. 9; Dated, 26 Mar. 66

3. By amending the following very high frequency omnirange (VOR) procedures prescribed in § 97.11(c) to read:

VOR STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.
If an instrument approach procedure of the above type is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of the Federal Aviation Agency. Initial approaches shall be made over specified routes. Minimum altitudes shall correspond with those established for en route operation in the particular area or as set forth below.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
				T-dn	300-1	300-1	NA
				C-dn	500-1	500-1	NA
				S-dn-24	500-1	500-1	NA
				A-dn	NA	NA	NA

Radar available through Buffalo Radar.
Procedure turn E* side of crs, 045° Outbnd, 225° Inbnd, 2500′ within 10 miles.
Minimum altitude over facility on final approach crs, 1500′.
Crs and distance, facility to airport, 225°—4.9 miles.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 4.9 miles after passing BUF VOR, make a left-climbing turn and return to BUF VOR at 2500′. Hold BUF VOR right turns, 1 minute, 287° Inbnd.
*All turns E side of crs, traffic restriction W.
MSA within 25 miles of facility: 080°–170°—2200′; 170°–260°—3900′; 260°–350°—2400′; 350°–080°—2200′.

City, Buffalo; State, N.Y.; Airport name, Buffalo Airpark; Elev., 668′; Fac. Class., H-BVORTAC; Ident., BUF; Procedure No. 1, Amdt. 1; Eff. date, 15 Oct. 66; Sup. Amdt. No. Orig.; Dated, 8 Jan. 66

				T-dn	300-1	300-1	200-½
				C-dn	400-1	500-1	500-1½
				S-dn-31	400-1	400-1	400-1
				A-dn*	NA	NA	NA

Procedure turn E side of crs, 120° Outbnd, 300° Inbnd, 1700′ within 10 miles.
Minimum altitude over facility on final approach crs, 700′.
Crs and distance, facility to airport, 300°—3.2 miles.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 3.2 miles after passing CTY VOR, climb to 1700′ on R 300° within 20 miles.
NOTES: (1) Night takeoffs and landings authorized on Runways 13-31 only. (2) Use Gainesville altimeter setting.
*Weather not available to the public.
MSA within 25 miles of facility: 000°–090°—1400′; 090°–180°—1400′; 180°–270°—1100′; 270°–360°—1400′.

City, Cross City; State, Fla.; Airport name, Cross City; Elev., 42′; Fac. Class., L-BVOR; Ident., CTY; Procedure No. 1, Amdt. 9; Eff. date, 13 Oct. 66; Sup. Amdt. No. 8; Dated, 4 Jan. 64

				T-dn	*500-1	*500-1	*500-1
				C-dn	800-2	800-2	800-2
				A-dn#	NA	NA	NA

Procedure turn E side of crs, 211° Outbnd, 031° Inbnd, 5100′ within 10 miles of PSK VOR.
Minimum altitude over facility on final approach crs, 3900′.
Crs and distance, facility to airport, 031°—3.2 miles.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 3.2 miles after passing PSK VOR, make right-climbing turn to 5100′ on R 080° within 20 miles. Reverse crs to PSK VOR, hold SW on PSK VOR R 211°, 031° Inbnd, 1-minute right turns.
Use Bluefield FSS altimeter setting.
*CAUTION: Mountainous terrain 1500′ higher than airport elevation S, W, and N at 5 to 8 miles. Higher terrain at greater distances.
NOTE: When authorized by ATC, DME may be used between R 150° clockwise to R 260° within 10 miles at 5100′ to position aircraft for approach with elimination of procedure turn.
#Alternate weather minimums of 800-2 authorized for those having approved arrangement for weather service at the airport.
MSA within 25 miles of facility: 000°–090°—5400′; 090°–180°—5000′; 180°–270°—5000′; 270°–360°—5100′.

City, Dublin; State, Va.; Airport name, New River Valley; Elev., 2105′; Fac. Class., H-BVORTAC; Ident., PSK; Procedure No. 2, Amdt. 1; Eff. date, 15 Oct. 66; Sup. Amdt. No. Orig.; Dated, 21 July 66

VOR STANDARD INSTRUMENT APPROACH PROCEDURE—Continued

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.
If an instrument approach procedure of the above type is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of the Federal Aviation Agency. Initial approaches shall be made over specified routes. Minimum altitudes shall correspond with those established for en route operation in the particular area or as set forth below.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less: 65 knots or less	2-engine or less: More than 65 knots	More than 2-engine, more than 65 knots
				T-d	800-1	NA	NA
				C-d	1400-2	NA	NA
				A	NA	NA	NA

Procedure turn N side of crs, 273° Outbnd, 093° Inbnd, 3500′ within 10 miles.
Minimum altitude over facility on final approach crs 2000′.
Crs and distance, facility to airport, 093°—8.8 miles.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 8.8 miles after passing HUO VOR, climb on crs, 093° to 2500′, then make left-climbing turn to 3500′, and proceed direct to HUO VOR. Hold W of HUO VOR, 1-minute right turns, Inbnd crs, 093°.
NOTE: Use altimeter setting from Stewart AFB.
MSA within 25 miles of the facility: 000°-090°—3300′; 090°-360°—3100′.

City, Middletown; State, N.Y.; Airport name, Randall; Elev., 520′; Fac. Class., H-BVORTAC; Ident., HUO; Procedure No. 1, Amdt. Orig.; Eff. date, 15 Oct. 66

HUO VORTAC	Ottisville VHF/DME Int (final)	Direct	1900	T-d	1000-2	1000-2	NA
				C-d	1200-2	1200-2	NA
				A-d	NA	NA	NA

Procedure turn S side of crs, 219° Outbnd, 039° Inbnd, 3500′ within 10 miles.
Minimum altitude over facility on final approach crs, 3000′; Ottisville Int/8-mile DME Fix 1900′.
Crs and distance, facility to airport, 039°—12.5 miles/Ottisville Int/8-mile DME Fix to airport, 039°—4.5 miles.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 12.5 miles after passing Huguenot VORTAC or 4.5 miles after passing Ottisville Int/8-mile DME Fix, make immediate left-climbing turn to 3000′. Proceed direct to HUO VORTAC. Hold SW, 1-minute right turns 039° Inbnd.
NOTE: Use Stewart AFB altimeter setting.
MSA within 25 miles of facility: 000°-090°—3300′; 090°-360°—3100′.

City, Wurtsboro; State, N.Y.; Airport name, Wurtsboro; Elev., 560′; Fac. Class. (H)BVORTAC; Ident., HUO; Procedure No. 1, Amdt. Orig; Eff. date, 15 Oct. 66

4. By amending the following terminal very high frequency omnirange (TerVOR) procedures prescribed in § 97.13 to read:

TERMINAL VOR STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.
If an instrument approach procedure of the above type is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of the Federal Aviation Agency. Initial approaches shall be made over specified routes. Minimum altitudes shall correspond with those established for en route operation in the particular area or as set forth below.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less: 65 knots or less	2-engine or less: More than 65 knots	More than 2-engine, more than 65 knots
Stanton Int	Jackson VOR	Direct	2300	T-dn	300-1	300-1	200-½
				C-dn	600-1	600-1	600-1½
				S-dn 2#	600-1	600-1	600-1
				A-dn	800-2	800-2	800-2
				If Mercer Fan Marker is received minimums become:			
				C-dn	400-1	500-1	500-1½
				S-dn 2	400-1	400-1	400-1
Martin Int	Jackson VOR	Direct	2100	T-dn	300-1	300-1	200-½
				C-dn	600-1	600-1	600-1½
				S-dn 2#	600-1	600-1	600-1
				A-dn	800-2	800-2	800-2
				If Mercer Fan Marker is received minimums become:			
				C-dn	400-1	500-1	500-1½
				S-dn 2	400-1	400-1	400-1

Procedure turn S side of crs, 204° Outbnd, 024° Inbnd, 2000′ within 10 miles.
Minimum altitude over facility on final approach crs, 1000′ (800′ if Mercer FM is received).
Facility on airport. Crs and distance, FM to airport, 024°—3.7 miles.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 3.7 miles after passing Mercer FM or within 0 mile of MKL VOR, turn left, climb to 2000′ on R 204° within 20 miles.
#Reduction not authorized.
MSA within 25 miles of facility: 000°-360°—2100′.

City, Jackson; State, Tenn.; Airport name, McKellar Field; Elev., 431′; Fac. Class., T-BVOR; Ident., MKL; Procedure No. TerVOR-2, Amdt. Orig.; Eff. date, 13 Oct. 66

Bridgeport VOR	HVN VOR	Direct	2000	T-dn	300-1	300-1	200-½
				C-dn	600-1	600-1	600-1½
				S-dn-1#	400-1	400-1	400-1
				A-dn	NA	NA	NA

Procedure turn E side of crs, 205° Outbnd, 025° Inbnd, 1600′ within 10 miles.
Minimum altitude over Woodmont on final approach, 500′.
Crs and distance, breakoff point to approach end of runway, 016°—0.4 mile.
Crs and distance, Woodmont Int to VOR, 025°—2 miles.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 0 mile of HVN VOR, climb on R 025° to 1500′ within 5 miles then make left-climbing turn to 1900′. Proceed direct to HVN VOR. Hold NE HVN VOR, R 025°, 1-minute left turns, Inbnd crs, 205°.
NOTES: Weather reporting by U.S. Weather Bureau 0700 to 1700 local time. No tower communication at airport. Contact Westchester approach control for ATC clearance. Medium intensity runway lights on all runways available upon prior request to airport manager.
#Reduction not authorized for lighting aids.
MSA within 25 miles of facility: 270°-090°—2100′; 090°-270°—1600′.

City, New Haven; State, Conn.; Airport name, Tweed-New Haven; Elev., 14′; Fac. Class., T-BVOR; Ident., HVN; Procedure No. TerVOR-1, Amdt. 6; Eff. date, 15 Oct. 66; Sup. Amdt. No. 5; Dated, 27 Mar. 65

PROCEDURE CANCELED, EFFECTIVE 15 OCT. 1966.

City, Richmond; State, Va.; Airport name, Richard E. Byrd Flying Field; Elev., 167′; Fac. Class., BVOR; Ident., RIC; Procedure No. Ter VOR-6, Amdt. 9; Eff. date, 13 Nov. 65; Sup. Amdt. No. 8; Dated, 14 Nov. 64

TERMINAL VOR STANDARD INSTRUMENT APPROACH PROCEDURE—Continued

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.

If an instrument approach procedure of the above type is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of the Federal Aviation Agency. Initial approaches shall be made over specified routes. Minimum altitudes shall correspond with those established for en route operation in the particular area or as set forth below.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
Flat Rock VOR	Biltmore Int	Direct	2000	T-dn	300-1	300-1	200-½
Biltmore Int	RIC VOR (final)	Direct	600	C-dn	600-1	600-1	600-1½
Manakin RBn	RIC VOR	Direct	2000	S-dn-15	600-1	600-1	600-1
5-mile DME or Radar Fix	RIC VOR (final)	Direct	767	A-dn	800-2	800-2	800-2
				If Biltmore Int or 5-mile DME or Radar Fix received, the following minimums apply:			
				C-dn	500-1	500-1	500-1½
				S-dn-15#	400-1	400-1	400-1

Radar available.
Procedure turn N side of crs, 347° Outbnd, 167° Inbnd, 1700' within 10 miles.
Minimum altitude over Biltmore Int 5-mile DME or Radar Fix on final approach crs, 767'.
Crs and distance, breakoff point to approach end of runway, 154°—0.6 mile.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 0 mile of RIC VOR, climb to 2000' on R 167° RIC VOR within 10 miles, return to RIC VOR. Hold SW, 220° Outbnd, 040° Inbnd, 1-minute right turns.
#400-¾ authorized, except for 4-engine turbojet aircraft, with operative high-intensity runway lights.
MSA within 25 miles of facility: 000°-180°—1600'; 180°-360°—2100'.

City, Richmond; State, Va.; Airport name, Richard E. Byrd Flying Field; Elev., 167'; Fac. Class., H-BVORTAC; Ident., RIC; Procedure No. Ter VOR-15, Amdt. 15, Eff. date, 15 Oct. 66; Sup. Amdt. No. 14; Dated, 27 Nov. 65

Flat Rock VOR	RIC VOR	Direct	2000	T-dn	300-1	300-1	200-½
Manakin RBn	RIC VOR	Direct	2000	C-dn	600-1	600-1	600-1½
Hopewell VOR	RIC VOR	Direct	1700	S-dn-20*	600-1	600-1	600-1
				A-dn	800-2	800-2	800-2
				If 5-mile DME/Radar or HPW R 332° received the following minimums apply:*			
				C-dn	500-1	500-1	500-1½
				S-dn	400-1	400-1	400-1

Procedure turn E side of crs, 005° Outbnd, 185° Inbnd, 1700' within 10 miles.
Minimum altitude over 5-mile DME or Radar Fix on final approach crs, 767'.
Facility on field. Breakoff point to runway, 200°—0.9 mile.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 0 mile of RIC VORTAC, climb to 2000' on RIC, R 185° within 10 miles, return to VOR. Hold SW, 220° Outbnd, 040° Inbnd, 1-minute right turns.
MSA within 25 miles of the facility: 000°-180°—1600'; 180°-360°—2100'.

City, Richmond; State, Va.; Airport name, Richard E. Byrd Flying Field; Elev., 167'; Fac. Class., H-BVORTAC; Ident., RIC; Procedure No. TerVOR-20, Amdt. Orig.; Eff. date, 15 Oct. 66

Flat Rock VOR	RIC VOR	Direct	2000	T-dn	300-1	300-1	200-½
Hopewell VOR	RIC VOR	Direct	1700	C-dn	600-1	600-1	600-1½
Manakin RBn	RIC VOR	Direct	2000	S-dn-33	600-1	600-1	600-1
5-mile DME or Radar Fix	RIC VOR (final)	Direct	767	A-dn	800-2	800-2	800-2
				If 5-mile DME or Radar Fix received the following minimums apply:			
				C-dn	500-1	500-1	500-1½
				S-dn-33#	400-1	400-1	400-1

Radar available.
Procedure turn N side of crs, 140° Outbnd, 320° Inbnd, 1700' within 10 miles.
Minimum altitude over 5-mile Radar Fix or 5-mile DME Fix on final approach crs, 767'.
Crs and distance, breakoff point to approach end of runway, 334°—0.8 mile.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 0 mile of RIC VOR, climb to 2000' on R 320° of RIC; VOR within 10 miles, return to RIC VOR. Hold SW, 220° Outbnd, 040° Inbnd, 1-minute right turns.
#400-¾ authorized, except for 4-engine turbojet aircraft, with operative high-intensity runway lights.
MSA within 25 miles of facility: 000°-180°—1600'; 180°-360°—2100'.

City, Richmond; State, Va.; Airport name, Richard E. Byrd Flying Field; Elev., 167'; Fac. Class., H-BVORTAC; Ident., RIC; Procedure No. Ter VOR-33, Amdt. 11; Eff. date 15 Oct. 66; Sup. Amdt. No. 10; Dated, 17 Apr. 65

Albany VORTAC	SCH VOR	Direct	2500	T-dn	300-1	300-1	200-½
Mariaville Int	SCH VOR	Direct	3000	C-dn	500-1	500-1	500-1½
				S-dn-22	500-1	500-1	500-1
				A-dn	NA	NA	NA

Radar available.
Procedure turn E side of crs, 043° Outbnd, 223° Inbnd, 2000' within 10 miles.
Minimum altitude over facility on final approach crs, 878'.
Facility on airport. Breakoff point to runway, 0.5 mile.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished, climb to 1800' on radial 223° within 8 miles, then right-climbing turn to 2000' direct SCH VOR. Hold NE of SCH VOR, 1-minute, left turns, 223° Inbnd.
NOTES: (1) Final approach from a holding pattern not authorized, procedure turn required. (2) TVOR operated by ANG; not monitored 0300-1100Z daily.
CAUTION: 990' antenna (5.5 miles SW of SCH VOR).
MSA within 25 miles of facility: 000°-090°—3500'; 090°-180°—3000'; 180°-270°—3500'; 270°-360°—3500'.

City, Schenectady; State, N.Y.; Airport name, Schenectady County; Elev., 378'; Fac. Class., TVOR; Ident., SCH; Procedure No. TerVOR-22, Amdt. Orig.; Eff. date, 15 Oct. 66

5. By amending the following very high frequency omnirange—distance measuring equipment (VOR/DME) procedures prescribed in § 97.15 to read:

VOR/DME STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.

If an instrument approach procedure of the above type is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of the Federal Aviation Agency. Initial approaches shall be made over specified routes. Minimum altitudes shall correspond with those established for en route operation in the particular area or as set forth below.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
BIL VOR	10-mile DME Fix R 078°	Direct	5700	T-dn%	300-1	300-1	200-½
R 330°, BIL VOR clockwise	R 078°, BIL VOR	Via 16-mile DME Arc.	5700	C-dn	500-1	500-1	500-1½
				S-dn-27¢	400-1	400-1	400-1
R 114°, BIL VOR counterclockwise	R 078°, BIL VOR	Via 16-mile DME Arc.	5700	A-dn	800-2	800-2	800-2
Huntley DME Fix	10-mile DME Fix, R 078° (final)	Direct	5200				

Procedure turn N side of crs, 078° Outbnd, 258° Inbnd, 5700′ between 10- and 20-mile DME Fix, R 078°.

Minimum altitude over 16-mile DME Fix, R 078° on final approach crs, 5700′, 10-mile DME Fix, R 078°, 5200′.

If visual contact not established upon descent to authorized landing minimums or if landing not accomplished at 4.6 mile-DME Fix, R 078°, climb to 5300′ on R 250° of BIL VOR within 10 miles.

NOTE: Final approach from holding pattern at 10-mile DME Fix, R 078° not authorized. Procedure turn required.

¢400-¾ authorized, with operative high-intensity runway lights, except for 4-engine turbojets.

%When weather is below 600-2 and aircraft is southeastbound, flight below 4700′ is prohibited SE of airport between BIL VOR radials 080° clockwise to 110° inclusive due to 4249′ tower, 3 miles SE of airport.

MSA within 25 miles of the facility: 000°-090°—5300′; 090°-180°—6800′; 180°-270°—5900′; 270°-360°—5300′.

City, Billings; State, Mont.; Airport name, Logan Field; Elev., 3606′; Fac. Class., H-BVORTAC; Ident., BIL; Procedure No. VOR/DME No. 2, Amdt. 6; Eff. date, 15 Oct. 66; Sup. Amdt. No. ; Dated, 3 Sept. 66

PROCEDURE CANCELED, EFFECTIVE 15 OCT. 1966.

City, Dublin; State, Va.; Airport name, New River Valley; Elev., 2105′; Fac. Class., BVORTAC; Ident., PSK; Procedure No. VOR/DME No. 1; Amdt. Orig.; Eff. date 21 July 66

HLN VORTAC	4-mile DME Fix, R 070°	Direct	8100	T-d%	500-2	500-2	500-2
R 100°, HLN VOR counterclockwise	R 070, HLN VOR	12 nautical mile DME Arc	8100	T-n%	800-2	800-2	800-2
				C-d	1000-2	1000-2	1000-2
12-mile DME Fix, R 070°	4-mile DME Fix, R 070° (final)	Direct	6100	C-n	1000-3	1000-3	1000-3
				A-d	1000-2	1000-2	1000-2
				A-n	1000-3	1000-3	1000-3

Procedure turn N side of crs 070° Outbnd, 250° Inbnd, 8100′ between 4- and 14-mile DME Fix.

Minimum altitude over 4-mile DME Fix, R 070° on final approach crs, 6100′.

Crs and distance, 4-mile DME Fix, R 070° to airport, 250°—4.7 miles.

If visual contact not established upon descent to authorized landing minimums or if landing not accomplished over VOR, make right-climbing turn, climb to 8100′ in right-hand holding pattern on R 070° within 5 miles of HLN VOR.

NOTE: Final approach from holding at 4-mile DME Fix, R 070° not authorized. Procedure turn required.

%Takeoffs all runways: Aircraft departing via airways and climb to MEA cannot be made clear of clouds with visibility of at least 2 miles, climb in a right-hand holding pattern within 5 miles on R 070° of the VOR to depart the facility at 8000′ or above.

MSA within 25 miles of facility: 000°-090°—11,000′; 090°-180°—11,500′; 180°-270°—10,800′; 270°-360°—9600′.

City, Helena; State, Mont.; Airport name, Helena; Elev., 3873′; Fac. Class., H-BVORTAC; Ident., HLN; Procedure No. VOR/DME No. 1, Amdt. Orig.; Eff. date, 13 Oct. 66;

PROCEDURE CANCELED, EFFECTIVE 15 OCT. 1966.

City, New York; State, N.Y.; Airport name, John F. Kennedy International; Elev., 12′; Fac. Class., H-VORTAC; Ident., JFK; Procedure No. VOR/DME No. 1, Amdt. 4; Eff. date, 18 Dec. 65; Sup. Amdt. No. 3; Dated, 2 Apr. 64.

PROCEDURE CANCELED, EFFECTIVE 15 OCT. 1966

City, Twin Falls; State, Idaho; Airport name, Twin Falls Municipal (Joslin Field); Elev., 4148′; Fac. Class., L-BVORTAC; Ident., TWF; Procedure No. VOR/DME-1, Amdt. Orig.; Eff. date, 1 Oct. 66

PROCEDURE CANCELED, EFFECTIVE 15 OCT. 1966.

City, Twin Falls; State, Idaho; Airport name, Twin Falls Municipal (Joslin Field); Elev., 4148′; Fac. Class., L-BVORTAC; Ident., TWF; Procedure No. VOR/DME-2, Amdt. Orig.; Eff. date, 1 Oct. 66

6. By amending the following instrument landing system procedures prescribed in § 97.17 to read:

ILS STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.

If an instrument approach procedure of the above type is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of the Federal Aviation Agency. Initial approaches shall be made over specified routes. Minimum altitudes shall correspond with those established for en route operation in the particular area or as set forth below.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
API VOR	Pine Int (final)	Via API, R 360° and SW ers ILS.	1700	T-dn$	300-1	300-1	200-½
				C-dn	400-1	500-1	500-1½
DPA VOR	Pine Int	Direct	2500	S-dn-4*	400-1	400-1	400-1
ORD VOR	Pine Int	Direct	2500	A-dn	800-2	800-2	800-2
Niles Int	ORD VOR	Direct	2500				
Lakewood Int	ORD VOR	Direct	2500				
OBK VOR	Pine Int	Direct	2500				

Radar available.
Procedure turn S side of crs, 218° Outbnd, 038° Inbnd, 2500′ within 10 miles of Pine Int or Radar Fix.
Minimum altitude over Pine Int or Radar Fix on final approach crs, 1700′.
Crs and distance, Pine Int or Radar Fix to airport, 038°—3.5 miles.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 3.5 miles of Pine Int, climb to 2500′, turn left and proceed to OBK VOR via OBK VOR R 170°.
NOTE: Dual VOR receivers or radar required.
*Reduction not authorized for nonstandard REIL.
$CAUTION: Takeoffs on Runway 27 when weather is below 2000-3, will intercept ORD VOR, R 250° and climb to 2000′ before proceeding westbound. Takeoffs on Runway 32L when weather is below 2000-3, will intercept ORD VOR, R 306° and climb to 2000′ before proceeding westbouud.

City, Chicago; State, Ill.; Airport name, Chicago-O'Hare International; Elev., 667′; Fac. Class., ILS; Ident., I-HNA; Procedure No. ILS-4, Amdt. Orig.; Eff. date, 15 Oct. 66

Scarsdale Int	UR LOM (final)	Direct	2000	T-dn	300-1	300-1	200-½
				C-dn	700-1	700-2	700-2
				S-dn-22	200-½	200-½	200-½
				A-dn	800-2	800-2	800-2
				Glide slope inoperative minimums become:			
					500-1	500-1	500-1

Radar available.
Procedure turn N side of crs, 043° Outbnd, 223° Inbnd, 2000′ within 10 miles.
Minimum altitude at glide slope interception Inbnd, 1922′.
Altitude of glide slope and distance to approach end of runway at OM, 1922′—5.7 miles; at MM, 241′—0.5 mile.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished, climb to 2500′ on crs of 223° to Prospect Int. Hold SW of Prospect Int, 1-minute left turns, Inbnd crs, 040°.
NOTES: (1) Bridge tower 383′, 2.5 miles NE and tank 422′, 1.7 miles N of airport. (2) Localizer back crs unusable for missed approach guidance.

City, New York; State, N.Y.; Airport name, La Guardia; Elev., 21′; Fac. Class., ILS; Ident., I-URD; Procedure No. ILS-22, Amdt. 3; Eff. date, 15 Oct. 66; Sup. Amdt. No. 2; Dated, 27 Mar. 65

7. By amending the following radar procedures prescribed in § 97.19 to read:

RADAR STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet, MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.

If a radar instrument approach is conducted at the below named airport, it shall be in accordance with the following instrument procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of the Federal Aviation Agency. Initial approaches shall be made over specified routes. Minimum altitude(s) shall correspond with those established for en route operation in the particular area or as set forth below. Positive identification must be established with the radar controller. From initial contact with radar to final authorized landing minimums, the instructions of the radar controller are mandatory except when (A) visual contact is established on final approach at or before descent to the authorized landing minimums, or (B) at pilot's discretion if it appears desirable to discontinue the approach, except when the radar controller may direct otherwise prior to final approach, a missed approach shall be executed as provided below when (A) communication on final approach is lost for more than 5 seconds during a precision approach, or for more than 30 seconds during a surveillance approach; (B) directed by radar controller; (C) visual contact is not established upon descent to authorized landing minimums; or (D) if landing is not accomplished.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
Radar vectoring and vector altitudes will be in accordance with approved Moffett Radar MOCA chart.				Surveillance approach			
				T-dn	300-1	300-1	200-½
				C-dn	700-1	700-1	NA
				S-dn	NA	NA	NA
				A-dn	NA	NA	NA

If visual contact not established upon descent to authorized landing minimums or if landing not accomplished, turn right, climb to 3000′, proceed to San Jose VOR (SJC) via SJC VOR, R 300°.
CAUTION: No control tower at airport. Numerous light aircraft operating in vicinity of airport during VFR weather conditions.
NOTE: SJC VOR, R 288° is coincident with ASR final approach vector. Use Moffett Field altimeter setting.

City, Palo Alto; State, Calif.; Airport name, Palo Alto Airport of Santa Clara County; Elev., 5′; Fac. Class. and Ident., Moffett Radar; Procedure No. 1, Amdt. Orig.; Eff. date, 15 Oct. 66

RADAR STANDARD INSTRUMENT APPROACH PROCEDURE—Continued

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
000°	360°	Within 20 miles	8500	Precision approach			
				T-dn%	300-1	300-1	200-½
				C-dn	600-1	600-1	600-1½
				S-dn-20	200-½	200-½	200-½
				A-dn	600-2	600-2	600-2

If visual contact not established upon descent to authorized landing minimums or if landing not accomplished, climb to 3100' on ALW VOR, R 195° within 10 miles.
NOTE: Procedure authorized 0700-1900 local time Monday-Friday.
%Takeoffs all runways: Climb on R 195° ALW VOR within 10 miles so as to cross ALW VOR at or above; northeastbound V-536, V-520, 2500'.

City, Walla Walla; State, Wash.; Airport name, Walla Walla City-County; Elev., 1205'; Fac. Class. and Ident., Walla Walla Radar; Procedure No. 1, Amdt. 1; Eff. date 15 Oct. 66; Sup. Amdt. No. Orig.; Dated, 3 Sept. 66

These procedures shall become effective on the dates specified therein.

(Secs. 307(c), 313(a), 601, Federal Aviation Act of 1958; 49 U.S.C. 1348(c), 1354(a), 1421; 72 Stat. 749, 752, 775)

Issued in Washington, D.C., on September 7, 1966.

C. W. WALKER,
Director, Flight Standards Service.

[F.R. Doc. 66-9997; Filed, Sept. 22, 1966; 8:45 a.m.]

Title 18—CONSERVATION OF POWER AND WATER RESOURCES

Chapter I—Federal Power Commission

[Docket No. R-289; Order No. 312-A]

PART 141—STATEMENTS AND REPORTS (SCHEDULES)

Form No. 12, Power System Statements for Class I and II Systems and for Class IV and V Systems Where Requested; Correction

SEPTEMBER 16, 1966.

In the order issued September 9, 1966, and published in the FEDERAL REGISTER September 16, 1966 (F.R. Doc. 66-10115, 31 F.R. 12093); correct "paragraph (d)" to read "paragraph (c)" in the first paragraph and in ordering paragraph (A).

GORDON M. GRANT,
Acting Secretary.

[F.R. Doc. 66-10414; Filed, Sept. 22, 1966; 8:45 a.m.]

Title 5—ADMINISTRATIVE PERSONNEL

Chapter II—Employment and Compensation in the Canal Zone

RECODIFICATION

EDITORIAL NOTE: In F.R. Doc. 66-10121, appearing at page 12202 of the issue for Friday, September 16, 1966, Chapter II of Title 5 was transferred and recodified as Subchapter E of Chapter I of Title 35.

Title 13—BUSINESS CREDIT AND ASSISTANCE

Chapter I—Small Business Administration

[Rev. 6; Amdt. 4]

PART 121—SMALL BUSINESS SIZE STANDARDS

Size Appeals Board Organization

The Small Business Size Standards Regulation (Rev. 6) (31 F.R. 9721), as amended (31 F.R. 10114, 11651) is hereby further amended by revising § 121.3-6(a) to read as follows:

§ 121.3-6 Appeals.

(a) *Organization.* The Size Appeals Board shall be the representative of the Administrator for reviewing size determinations pursuant to §§ 121.3-4 and 121.3-5, and product classifications made pursuant to § 121.3-8, and recommending to the Administrator whether such determinations and classifications should be sustained or appropriately modified. The Size Appeals Board is authorized to conduct such proceedings as it determines appropriate to enable it to consider appeals and recommend to the Administrator, decisions thereon.

(1) For the purpose of Government procurement, sales of Government property, or Government subcontracts, the Size Appeals Board shall consist of the Assistant Administrator for Program Planning, Evaluation, and Research, who shall serve as Chairman, and the Deputy Administrator for Procurement and Management Assistance, or such alternates as they designate.

(2) For the purpose of appeals in connection with financial assistance by a Small Business Investment Company or by a development company, the Size Appeals Board shall consist of the Assistant Administrator for Program Planning, Evaluation, and Research who shall serve as Chairman, the Deputy Administrator for Procurement and Management Assistance, and the Deputy Administrator for Investment, or such alternates as they designate.

(3) For the purpose of appeals in connection with all forms of assistance not included in subparagraph (1) or (2) of this paragraph, the Size Appeals Board shall consist of the Assistant Administrator for Program Planning, Evaluation, and Research who shall serve as Chairman, the Deputy Administrator for Procurement and Management Assistance and the Deputy Administrator for Financial Assistance, or such alternates as they designate.

* * * * *

This amendment shall become effective on publication in the FEDERAL REGISTER.

Dated: September 19, 1966.

BERNARD L. BOUTIN,
Administrator.

[F.R. Doc. 66-10421; Filed, Sept. 22, 1966; 8:46 a.m.]

Proposed Rule Making

CIVIL AERONAUTICS BOARD

[Docket No. 17725]

[14 CFR Part 221]

CONSTRUCTION, PUBLICATION, FILING AND POSTING OF TARIFFS OF AIR CARRIERS AND OF FOREIGN AIR CARRIERS

Posting of Notice of Limitation of Liability for Death or Injury of Passengers Under Warsaw Convention

SEPTEMBER 19, 1966.

Notice is hereby given that the Civil Aeronautics Board has under consideration an amendment to Part 221 of the Economic Regulations (14 CFR Part 221) to modify the posting requirements of the notice of limitation of liability for death or injury of passengers under the Warsaw Convention.

The principal features of the proposed amendment are recited in the attached explanatory statement and the proposed amendment to Part 221 is set forth in the attached proposed rule. This regulation is proposed under authority of sections 204(a), 401(e), 402(e), 403, and 411 of the Federal Aviation Act of 1958, as amended (72 Stat. 743, 754, 757, 758, and 769; 49 U.S.C. 1324, 1371, 1372, 1373, and 1381).

Interested persons may participate in the proposed rule making through submission of ten (10) copies of written data, views or arguments pertaining thereto, addressed to the Docket Section, Civil Aeronautics Board, Washington, D.C. 20428. All relevant matter in communications received on or before October 24, 1966, will be considered by the Board before taking final action on the proposed rule. Copies of such communications will be available for examination by interested persons in the Docket Section of the Board, Room 710, Universal Building, 1825 Connecticut Avenue NW., Washington, D.C., upon receipt thereof.

By the Civil Aeronautics Board.

[SEAL] HAROLD R. SANDERSON,
Secretary.

Explanatory statement. The United States is party to the Convention for the Unification of Certain Rules Relating to International Transportation by Air signed at Warsaw, October 12, 1929 (Warsaw Convention), 49 Stat. 3000. The Convention limits the legal liability of airlines to passengers and shippers in "international transportation," a term defined therein. Most of the transportation to and from the United States and segments of international journeys performed wholly within the United States are governed by the Convention. Among other things, the Convention creates a presumption of liability on the part of the carrier and limits the carrier's liability for death or injury of passengers to approximately $8,290, except in the case of willful misconduct or default deemed equivalent thereto. The Convention further provided that by special contract the carrier and the passenger might agree to a limit of liability higher than the $8,290 set forth in the Convention.

By Regulation ER-395 adopted October 31, 1963 (28 F.R. 11775), the Board required air carriers and foreign air carriers in the United States which avail themselves of the limit on liability to passengers provided in the Warsaw Convention to (1) publish in their tariffs information on the Warsaw Convention liability limit; (2) deliver to passengers a prescribed notice in writing concerning such limit by one of three alternative means; and (3) post a sign containing the prescribed notice at all ticket counters and agents' offices in the United States.

By Order E-23680, May 13, 1966, the Board approved an agreement among various air carriers, foreign air carriers, and other carriers to increase the limitations of liability now applicable to claims for personal injury and death under the Convention which was filed with the Board (Agreement No. CAB 18900) pursuant to section 412(a) of the Act and Part 261 of the Board's Economic Regulations (Docket 17325). By this agreement, the parties thereto bound themselves to include in their tariffs, effective May 16, 1966, a special contract in accordance with the Warsaw Convention[1] or the Hague Protocol[2] providing for a limit of liability for each passenger for death, wounding, or other bodily injury of $75,000 inclusive of legal fees.[3] The parties further agree to provide in their tariffs that the carrier would not, with respect to any claim arising out of the death, wounding, or other bodily injury of a passenger, avail itself of certain defenses. The carriers further stipulated that they would, at the time of delivery of the tickets, furnish to each passenger governed by the Convention or the Protocol and by the special contract described above, a notice in 10-point type advising such international passengers of the limitations of liability established by the Convention or the Protocol, or the higher liability agreed to in the special contracts pursuant to the Convention or Protocol as described above.

On July 26, 1966, Pan American World Airways, Inc. (Pan American) and Trans World Airlines, Inc. (TWA) jointly filed a petition seeking a rule making proceeding to eliminate or modify the posting requirement of § 221.175(b).[4] The petitioners assert that the intercarrier agreement approved by the Board on May 13, 1966, with the higher limit for liability than that set forth in the Convention or Protocol, provides a form of notice for delivery to international passengers to be used in lieu of the notice set forth in § 221.175(a); that the posting requirement of § 221.175(b) is no longer necessary and should be eliminated; and that, if such posting requirement is not eliminated, it should at least be replaced with a simpler form of notice. In support of deleting the posting requirement, they contend that the public is far better informed with regard to the Convention than it was in 1963 when § 221.175 was adopted so that posting is no longer necessary. In support of a simpler form of notice for posting, they assert that since the notice in the intercarrier agreement, approved by the Board on May 13, 1966, is substantially longer than that set forth in the existing regulation, a ticket counter sign comprised of the longer notice would be too large and unwieldy to be practical. This simpler form of notice, in the carriers' view, should merely refer to the Warsaw Convention and to the fact that it limits liability for death or personal injury and for loss of, or damage to, baggage, without stating amounts.

Eastern Air Lines, Inc. (Eastern) filed an "answer"[5] in support of the joint petition of TWA and Pan American and requests deletion of the posting require-

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[1] The proviso in § 221.175(a) reflects this provision of the Convention.

[2] The Convention was amended by the Protocol signed at The Hague in 1955 which has never been ratified by the United States. The Protocol, subject to certain provisions, provides for liability limitations of approximately $16,600 as compared to limitations of $8,300 in the Convention.

[3] The limit of liability is $58,000, exclusive of legal fees and costs.

[4] Section 221.175(b) requires that each air carrier and foreign air carrier which avails itself of the limitation on liability to passengers provided by the Warsaw Convention, display at each desk, station, and position in the United States which is in charge of a person employed by it or by any agent employed by such carrier to sell tickets to passengers whose transportation may be governed by the Warsaw Convention and whose place of departure or destination may be in the United States, a sign which shall have printed thereon the statement prescribed in § 221.175(a). Section 221.175(a) sets forth a prescribed form of notice with the amounts of limitations with respect to personal injury or death specified therein and contains a provision that when the carrier elects to agree to a higher limit of liability to passengers than that provided in the Warsaw Convention, such statement shall be modified to reflect the higher limit.

[5] Since the Board's rules of practice do not provide for the filing of answers to petitions for rule making, Eastern's "answer" will be considered a separate petition for rule making.

ment. In addition to the above arguments, Eastern contends that ticket counter signs are not an effective means of giving notice since passengers generally ignore them, that a significant percentage of airline customers never appear at ticket counters or offices, and that the United States is the only country that requires carriers which avail themselves of the Warsaw Convention liability limitations to post ticket counter signs at each desk where tickets are sold.

We propose to modify the posting requirement of § 221.175(b) by authorizing use of a simpler form of ticket counter sign. In our view, a posting of some type of notice is needed as a means of informing the public of the liability limitations of carriers under the Warsaw Convention. However, those carriers which have increased the amount of their liability thereunder and have waived defenses otherwise available to them under the Convention, should, in view of practical exigencies, be permitted to use a simpler form of notice for posting than that now provided by § 221.175 (b). The ticket counter sign proposed herein will accomplish the primary purpose of posting which is to advise the public that it may be subject to the liability limitations provided for in the Convention or Protocol, and at the same time meet the principal objections of the petitioners. Those air carriers and foreign air carriers which do not sign and file counterparts of the intercarrier agreement will continue to be subject to the posting requirement of present § 221.175(b).

Proposed Rule. The Civil Aeronautics Board proposes to amend Part 221 of the Economic Regulations (14 CFR Part 221) by modifying § 221.175(b) to read as follows:

§ 221.175 Special notice of limited liability for death or injury under the Warsaw Convention.

* * * * *

(b) Each air carrier and foreign air carrier which, to any extent, avails itself of the limitation on liability to passengers provided by the Warsaw Convention, shall also cause to be displayed continuously in a conspicuous public place at each desk, station, and position in the United States which is in charge of a person employed exclusively by it or by it jointly with another person, or by any agent employed by such air carrier or foreign air carrier to sell tickets to passengers whose transportation may be governed by the Warsaw Convention and whose place of departure or destination may be in the United States, a sign which shall have printed thereon the statement prescribed in paragraph (a) of this section: *Provided, however,* That an air carrier or foreign air carrier which provides a higher limitation of liability than that set forth in the Warsaw Convention and has signed a counterpart of the agreement among carriers providing for such higher limit, which agreement was approved by the Board by Order E–23680, dated May 13, 1966 (31 F.R. 7302, May 19, 1966), may use the following notice in the manner prescribed above in full compliance with the posting requirements of this paragraph:

ADVICE TO INTERNATIONAL PASSENGERS ON LIMITATION OF LIABILITY

Passengers traveling to or from a foreign country are advised that airline liability for death or personal injury and loss or damage to baggage may be limited by the Warsaw Convention and tariff provisions. See the notice with your ticket or contact your airline ticket office or travel agent for further information.

Such statements shall be printed in bold face type at least one-fourth of an inch high.

[F.R. Doc. 66–10431; Filed, Sept. 22, 1966; 8:46 a.m.]

Notices

DEPARTMENT OF THE INTERIOR

Bureau of Land Management

[Serial No. 0 49]

OREGON

Notice of Proposed Withdrawal and Reservation of Land

SEPTEMBER 16, 1966.

The Bureau of Land Management, U.S. Department of the Interior, has filed an application, Serial No. 0 49, for the withdrawal of the public lands described below, from all forms of appropriation under the mining laws (Ch. 2, 30 U.S.C.) but not from leasing under the mineral leasing laws.

The applicant desires the lands for the permanent establishment and development of the Merlin Seed Orchard.

For a period of 30 days from the date of publication of this notice, all persons who wish to submit comments, suggestions or objections in connection with the proposed withdrawal may present their views in writing to the undersigned office of the Bureau of Land Management, Department of the Interior, 729 Northeast Oregon Street, Post Office Box 2965, Portland, Oreg. 97208.

The authorized officer of the Bureau of Land Management will undertake such investigations as are necessary to determine the existing and potential demand for the lands and their resources. He will also undertake negotiations with the applicant agency with the view of adjusting the application to reduce the area to the minimum essential to meet the applicant's needs, to provide for the maximum concurrent utilization of the lands for purposes other than the applicant's, to eliminate lands needed for purposes more essential than the applicant's, and to reach agreement on the concurrent management of the lands and their resources.

He will also prepare a report for consideration by the Secretary of the Interior who will determine whether or not the lands will be withdrawn as requested by the Bureau of Land Management.

The determination of the Secretary on the application will be published in the FEDERAL REGISTER. A separate notice will be sent to each interested party of record.

If circumstances warrant it, a public hearing will be held at a convenient time and place which will be announced.

The lands involved in the application are:

WILLAMETTE MERIDIAN

MERLIN SEED ORCHARD SITE

T. 35 S., R. 6 W.,
Sec. 9, NW¼, NW¼SE¼.

The areas described aggregate 200 acres.

VIRGIL O. SEISER,
Chief, Branch of Lands.

[F.R. Doc. 66-10417; Filed, Sept. 22, 1966; 8:45 a.m.]

Office of the Secretary

ALASKA

Notice of Filing of Protraction Diagrams for Northern Alaska and of Availability of Lands for Noncompetitive Oil and Gas Leasing

Notice is hereby given that the following approved protraction diagrams will be officially filed in the District and Land Office, Bureau of Land Management, Fairbanks, at 10 a.m. on September 26, 1966.

ALASKA PROTRACTION DIAGRAMS (UNSURVEYED), APPROVED MAY 17, 1962

UMIAT MERIDIAN

Folio No. 6, Sheet No. 7, Tps. 5–8 N., Rs. 41–45 W.
Folio No. 6, Sheet No. 9, Tps. 1–4 N., Rs. 41–44 W.
Folio No. 7, Sheet No. 1, Tps. 4–8 S., Rs. 49–52 W.
Folio No. 7, Sheet No. 2, Tps. 6–8 S., Rs. 53–56 W.
Folio No. 7, Sheet No. 3, Tps. 6–8 S., Rs. 57–60 W.
Folio No. 7, Sheet No. 4, Tps. 9–12 S., Rs. 61–63 W.
Folio No. 7, Sheet No. 5, Tps. 9–12 S., Rs. 57–60 W.
Folio No. 7, Sheet No. 6, Tps. 9–12 S., Rs. 53–56 W.
Folio No. 7, Sheet No. 7, Tps. 9–12 S., Rs. 49–52 W.
Folio No. 8, Sheet No. 3, Tps. 1–4 S., Rs. 41–44 W.
Folio No. 8, Sheet No. 4, Tps. 1–4 S., Rs. 45–48 W.
Folio No. 8, Sheet No. 5, Tps. 5–8 S., Rs. 45–48 W.
Folio No. 8, Sheet No. 6, Tps. 5–8 S., Rs. 41–44 W.
Folio No. 8, Sheet No. 9, Tps. 9–12 S., Rs. 33–36 W.
Folio No. 8, Sheet No. 10, Tps. 9–12 S., Rs. 37–40 W.
Folio No. 8, Sheet No. 11, Tps. 9–12 S., Rs. 41–44 W.
Folio No. 8, Sheet No. 12, Tps. 9–12 S., Rs. 45–48 W.
Folio No. 9, Sheet No. 11, Tps. 9–12 S., Rs. 25–28 W.
Folio No. 9, Sheet No. 12, Tps. 9–12 S., Rs. 29–32 W.

(1) By Public Land Order 3521 of January 9, 1965 (30 F.R. 271), the lands in the above described townships and ranges were opened to oil and gas leasing subject to the filing of approved leasing maps.

(2) The foregoing protraction diagrams, additionally labeled "Official Leasing Map—PLO 3521" and "Revised September 12, 1966, to show leasing blocks" are hereby approved and will be officially filed simultaneously with the protraction diagrams. They constitute the approved leasing maps required by Public Land Order 3521. Only those lands delineated and described as leasing blocks on the official leasing maps are made available for leasing offers by this notice.

(3) On the date the approved leasing maps are officially filed in the Fairbanks District and Land Office, the lands described therein will become available for noncompetitive oil and gas leasing pursuant to the Mineral Leasing Act of February 25, 1920 (41 Stat. 437; 30 U.S.C. sec. 181, et seq.), as amended, the regulations in 43 CFR Part 3120, and the provisions of this notice. The provisions of this notice shall supersede any provisions of the regulations with which they may be in conflict.

(a) In accordance with section 1 of Public Land Order 3521, all offers to lease the above described lands must describe the land applied for by block numbers in the specified townships as shown on the approved leasing maps. Each leasing block will be deemed to be a legal subdivision, subject to the restriction on assignments of part of a legal subdivision as set forth in 43 CFR 3128.1.

(b) Offers to lease these lands in the manner set out in paragraph (c) may be filed in the Fairbanks District and Land Office of the Bureau of Land Management from 10 a.m., on September 26, 1966, until 4 p.m., on November 18, 1966. Such offers will be considered as having been simultaneously filed.

(c) Offers to lease must be submitted on a "Special Oil and Gas Drawing Entry Card," Form 4–1720, signed by the applicant. The card will constitute the applicant's offer to lease the described block of land by participating in the drawing to determine the successful drawee. By signing and submitting the entry card, the applicant agrees that he will be bound to a lease on Form 4–1158 for the described block if such a lease is issued to him as a result of the drawing. Provisions of 43 CFR 3123.3(a) concerning multiple filings for one tract apply to this opening. Only one entry card will be drawn for each leasing block. The entry card must be accompanied by a $10 filing fee and the first year's advance rental for the total area as shown on the appropriate approved leasing map. The advance rental must be paid by cash, money order, certified check, bank draft, or bank cashier's check. While filing fees for two or more offers may be combined in one check, money order, etc., the advance rental must be submitted separately with each offer. The "Special Oil and Gas Drawing Entry Card" may be obtained from the land offices of the Bureau of Land Management in Fairbanks and Anchorage, Alaska, from the Denver Service Center,

Building 50, Denver Federal Center, Denver, Colo. 80225, or from the Office of the Director of the Bureau of Land Management, Washington, D.C. 20240.

(d) Upon the determination of the successful drawee for a particular block, the first year's rental will be earned and deposited in the U.S. Treasury, and will not be returnable. However, if an offeror withdraws his offer to lease prior to the beginning of the drawing or if his offer is rejected, the advance rental will be returned to him. Offerors who are unsuccessful in the drawing will be notified by the return of their respective entry cards.

(e) Any lands not included in offers to lease filed during the simultaneous filing period, or in offers which are withdrawn before the drawing, will become subject to leasing, as of 10 a.m., on November 21, 1966, in the usual manner on a priority of filing time basis and in accordance with the regulations in 43 CFR Part 3120, except that such offers must describe the lands by the leasing blocks as shown on the approved leasing maps.

(f) If a successful drawee is unqualified to receive a lease, the lands in the leasing block shall be included in a special simultaneous filing procedure to be announced at a later date by the Manager, Fairbanks District and Land Office.

(g) The provisions of 43 CFR 3120.6 pertaining to settlers on unsurveyed lands are not applicable to offers filed under the provisions of this notice.

(h) The drawing entry cards of unsuccessful applicants will be made available for public inspection pursuant to the provisions of 43 CFR Part 2, 60 days after the drawing is completed.

(4) Copies of the protraction diagrams listed herein and the approved leasing maps may be purchased at $1 per sheet from the Fairbanks District and Land Office, Bureau of Land Management, 516 Second Avenue, Fairbanks, Alaska 99701. Copies will not be available at the Bureau's Washington Office.

STANLEY A. CAIN,
Assistant Secretary of the Interior.

SEPTEMBER 20, 1966.

[F.R. Doc. 66-10446; Filed, Sept. 22, 1966; 8:48 a.m.]

DEPARTMENT OF AGRICULTURE

Commodity Credit Corporation

[Amdt. 2]

SALES OF CERTAIN COMMODITIES

September Sales List

Pursuant to the policy of the Commodity Credit Corporation issued October 12, 1954 (19 F.R. 6669) and subject to the conditions stated therein, the CCC Monthly Sales List for September 1966 is amended as set forth below:

Change the first sentence of the seventh paragraph of the Notice to Buyers to read as follows:

Effective at the close of business on September 19, 1966, the interest rates per annum under the CCC Export Credit Sales Program (Announcement GSM-3) for September 1966 are 6 percent for U.S. bank obligations and 7 percent for foreign bank obligations, without regard to credit periods involved up to a maximum of 36 months.

(Sec. 4, 62 Stat. 1070, as amended; 15 U.S.C. 714b. Interpret or apply sec. 407, 63 Stat. 1066; sec. 105, 63 Stat. 1051, as amended by 76 Stat. 612; secs. 303, 306, and 307, 76 Stat. 614-617; 7 U.S.C. 1441 (note))

Signed at Washington, D.C., on September 20, 1966.

H. D. GODFREY,
Executive Vice President, Commodity Credit Corporation.

[F.R. Doc. 66-10439; Filed, Sept. 22, 1966; 8:47 a.m.]

Office of the Secretary

COLORADO

Extension of Designation of Areas for Emergency Loans

For the purpose of making emergency loans pursuant to section 321 of the Consolidated Farmers Home Administration Act of 1961 (7 U.S.C. 1961), it has been determined that in the hereinafter-named counties in the State of Colorado natural disasters have caused a continuing need for agricultural credit not readily available from commercial banks, cooperative lending agencies, or other responsible sources.

Colorado	Original designation	Present extension
Conejos	30 F.R. 9887	30 F.R. 8282
Weld	29 F.R. 7784	

Pursuant to the authority set forth above, emergency loans will not be made in the above-named counties after June 30, 1967, except to applicants who previously received emergency or special livestock loan assistance and who can qualify under established policies and procedures.

Done at Washington, D.C., this 19th day of September 1966.

ORVILLE L. FREEMAN,
Secretary.

[F.R. Doc. 66-10423; Filed, Sept. 22, 1966; 8:46 a.m.]

NEBRASKA, NORTH DAKOTA, AND UTAH

Designation and Extension of Areas for Emergency Loans

For the purpose of making emergency loans pursuant to section 321 of the Consolidated Farmers Home Administration Act of 1961 (7 U.S.C. 1961), it has been determined that in the hereinafter-named counties in the States of Nebraska and Utah natural disasters have caused a need for agricultural credit not readily available from commercial banks, cooperative lending agencies, or other responsible sources.

NEBRASKA

Knox.

UTAH

Juab.

It has also been determined that in the hereinafter-named counties in the State of North Dakota the above-mentioned natural disasters have caused a continuing need for agricultural credit not readily available from commercial banks, cooperative lending agencies, or other responsible sources.

North Dakota:	*Original designation*
Cavalier	30 F.R. 13667
Sargent	31 F.R. 4931

Pursuant to the authority set forth above, emergency loans will not be made in the above-named counties after June 30, 1967, except to applicants who previously received emergency or special livestock loan assistance and who can qualify under established policies and procedures.

Done at Washington, D.C., this 19th day of September 1966.

ORVILLE L. FREEMAN,
Secretary.

[F.R. Doc. 66-10424; Filed, Sept. 22, 1966; 8:46 a.m.]

DEPARTMENT OF HEALTH, EDUCATION, AND WELFARE

Food and Drug Administration

[Docket No. FDC-D-95; NDA 11-657]

FELLOWS-TESTAGAR

Betaprone (Beta-Propiolactone); Notice of Opportunity for Hearing

Notice is hereby given to Fellows-Testagar, Division of Fellows Medical Manufacturing Co., Inc., 1354 West Lafayette Boulevard, Detroit, Mich. 48226, that in the matter of the supplement dated February 1961, and submitted in April 1961, to new-drug application No. 11-657, and subsequent amendments to the supplement, providing for Betaprone (beta-propiolactone) to be used for sterilization of plasma, the Commissioner of Food and Drugs proposes to refuse to approve the supplement under section 505(d) of the Federal Food, Drug, and Cosmetic Act on the grounds that:

1. The reports of investigations do not include adequate tests by all methods reasonably applicable to show whether or not the drug is safe for use under the conditions prescribed, recommended, or suggested in the proposed labeling.

2. The reports of tests included in the application do not show that the drug is safe for use under the proposed conditions of use.

3. On the basis of the information submitted to the Food and Drug Administration as part of the subject supplemental application, there is insufficient information to determine whether the drug is safe for use under the conditions proposed. Specifically, the reports of

clinical studies do not include adequate tests to ascertain whether there is an interaction of the drug and/or its hydrolysis products with plasma proteins of the recipient or whether altered donor plasma protein(s) are introduced into the recipient. Detailed reports with respect to some of the subacute and chronic animal studies have not been submitted. Animal reproductive studies have not been reported to show whether plasma treated with the drug may be safely used in pregnant women, and no limitation regarding such use has been included in the proposed labeling.

4. There is a lack of substantial evidence that the drug will have the effect it purports or is represented to have under the conditions of use prescribed, recommended, or suggested in the proposed labeling in that the studies submitted to not demonstrate effectiveness of the proposed regime for the prevention of serum hepatitis. Specifically:

a. In regard to the studies from the one American institution:

i. A concomitant, prospective control is lacking.

ii. The use of data from post mortem examinations to establish the presence or absence of serum hepatitis is not valid because only a portion of the patients who died are accounted for in terms of submitted protocols and there is the possibility that a number of patients whose jaundice and/or hepatomegaly was ascribed to other causes did have serum hepatitis.

iii. Data obtained from sensitive liver-function tests which would be necessary to rule out nonicteric serum hepatitis are absent.

b. In regard to the studies from a Japanese institution:

i. The regime employed differs from that recommended in the labeling in that ultraviolet irradiated plasma was not used.

ii. The experimental design is deficient in that an additional variable, whole blood, was used for one group and not for the other group.

In accordance with the provisions of section 505 of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 355) and the regulations appearing in Part 130, Title 21, Code of Federal Regulations, the Commissioner will give the applicant an opportunity for a hearing at which time the applicant may produce evidence and arguments on the question of whether the supplement dated February 1961, and submitted in April 1961, as amended, is approvable.

Within 30 days from the date of publication of this notice in the FEDERAL REGISTER, the applicant is required to file with the Hearing Clerk of the Department of Health, Education, and Welfare, Office of the General Counsel, Food and Drug Division, Room 5440, 330 Independence Avenue SW., Washington, D.C. 20201, a written appearance electing whether:

1. To avail itself of the opportunity for a hearing; or

2. Not to avail itself of the opportunity for a hearing.

If the applicant elects not to avail itself of the opportunity for a hearing, the Commissioner without further notice will enter a final order refusing to approve the supplemental application.

Failure of the applicant to file such a written appearance of election within 30 days following the date of publication of this notice in the FEDERAL REGISTER will be construed as an election by the applicant not to avail itself of the opportunity for a hearing.

The hearing contemplated by this notice will be open to the public, except that any portion of the hearing that concerns a method or process which the Commissioner finds is entitled to protection as a trade secret will not be open to the public, unless the respondent specifies otherwise in his appearance.

If the applicant elects to avail itself of the opportunity for a hearing by filing a timely written appearance of election, a hearing examiner will be named by the Commissioner and he shall issue a written notice of the time and place for the hearing.

This notice is issued under the authority contained in the Federal Food, Drug, and Cosmetic Act (secs. 505, 701(a), 52 Stat. 1052, as amended, 1055; 21 U.S.C. 355, 371(a)), and delegated to the Commissioner by the Secretary of Health, Education, and Welfare (21 CFR 2.120; 31 F.R. 3008).

Dated: September 19, 1966.

WINTON B. RANKIN,
Deputy Commissioner of Food and Drugs.

[F.R. Doc. 66-10433; Filed, Sept. 22, 1966; 8:47 a.m.]

HODAG CHEMICAL CORP.

Notice of Filing of Petition for Food Additive Methyl Glucoside-Coconut Oil Ester

Pursuant to the provisions of the Federal Food, Drug, and Cosmeti Act (sec. 409(b)(5), 72 Stat. 1786; 21 U.S.C. 348(b)(5)), notice is given that a petition has been filed by Hodag Chemical Corp., 7247 North Central Park Avenue, Skokie, Ill. 60077, proposing the issuance of a regulation to provide for the safe use of methyl glucoside-coconut oil ester as a surfactant in molasses intended for use as a component of animal feeds.

Dated: September 19, 1966.

WINTON B. RANKIN,
Deputy Commissioner of Food and Drugs.

[F.R. Doc. 66-10434; Filed, Sept. 22, 1966; 8:47 a.m.]

E. R. SQUIBB & SONS

Notice of Withdrawal of Petition for Food Additive Streptomycin

Pursuant to the provisions of the Federal Food, Drug, and Cosmetic Act (sec. 409(b), 72 Stat. 1786; 21 U.S.C., 348(b)), the following notice is issued:

In accordance with § 121.52 *Withdrawal of petitions without prejudice* of the procedural food additive regulations (21 CFR 121.52), E. R. Squibb & Sons, Georges Road, New Brunswick, N.J. 08902, has withdrawn its petition (FAP 6C1981), notice of which was published in the FEDERAL REGISTER of March 15, 1966 (31 F.R. 4425), proposing the issuance of a regulation to provide for the safe use of streptomycin boluses for the treatment of calf scours, catarrhal enteritis, and digestive disturbances in cattle.

The withdrawal of this petition is without prejudice to a future filing.

Dated: September 19, 1966.

WINTON B. RANKIN,
Deputy Commissioner of Food and Drugs.

[F.R. Doc. 66-10435; Filed, Sept. 22, 1966; 8:47 a.m.]

WEST VIRGINIA PULP & PAPER CO.

Notice of Filing of Petition for Food Additives

Pursuant to the provisions of the Federal Food, Drug, and Cosmetic Act (sec. 409(b)(5), 72 Stat. 1786; 21 U.S.C. 348(b)(5)), notice is given that a petition (FAP 7B2077) has been filed by West Virginia Pulp & Paper Co., 230 Park Avenue, New York, N.Y. 10017, proposing an amendment to paragraph (a)(2)(v) of § 121.2592 *Rosins and rosin derivatives* by deleting the specification "a minimum dehydroabieic acid content of 45 percent" for disproportionated rosin used in contact with food.

Dated: September 19, 1966.

WINTON B. RANKIN,
Deputy Commissioner of Food and Drugs.

[F.R. Doc. 66-10436; Filed, Sept. 22, 1966; 8:47 a.m.]

DEPARTMENT OF HOUSING AND URBAN DEVELOPMENT

Office of the Secretary

ASSISTANT SECRETARY FOR MORTGAGE CREDIT AND FEDERAL HOUSING COMMISSIONER

Delegation of Authority Regarding Cost-Level Findings Under the National Housing Act

The Assistant Secretary for Mortgage Credit and Federal Housing Commissioner, Department of Housing and Urban Development (herein called the Assistant Secretary), is hereby authorized:

1. To exercise the authority vested in the Secretary of Housing and Urban Development (herein called the Secretary) to make cost-level findings under the proviso in the first sentence of section 305(g) of the National Housing Act as amended by section 3 of Public Law 89-566, 80 Stat. 738, 12 U.S.C. 1720(d).

2. To redelegate the authority herein delegated to one or more employees under the Assistant Secretary's jurisdiction.

(79 Stat. 670, 5 U.S.C. 624d(d))

Effective date. This delegation of authority shall be effective as of September 19, 1966.

ROBERT C. WEAVER,
Secretary of Housing and Urban Development.

[F.R. Doc. 66-10342; Filed, Sept. 22, 1966; 8:45 a.m.]

ATOMIC ENERGY COMMISSION

[Docket No. 50-252]

UNIVERSITY OF NEW MEXICO

Notice of Issuance of Facility License

Please take notice that no request for a formal hearing having been filed following publication of the notice of proposed action in the FEDERAL REGISTER, the Atomic Energy Commission has issued Facility License No. R-102 to the University of New Mexico authorizing operation of the Model AGN-201, Serial No. 112 nuclear reactor at a maximum steady state power level of 100 milliwatts at the University's campus in Albuquerque, N. Mex.

The license, as issued, is set forth in the notice of proposed issuance of facility license published in the FEDERAL REGISTER on September 1, 1966, 31 F.R. 11559.

Dated at Bethesda, Md., this 17th day of September 1966.

For the Atomic Energy Commission.

PETER A. MORRIS,
Director,
Division of Reactor Licensing.

[F.R. Doc. 66-10411; Filed, Sept. 22, 1966; 8:45 a.m.]

CIVIL AERONAUTICS BOARD

[Docket No. 16080; Order E-24205]

AIR TRANSPORT ASSOCIATION OF AMERICA

Order Regarding Incentive Discounts for Containerized Shipments

Adopted by the Civil Aeronautics Board at its office in Washington, D.C., on the 20th day of September 1966.

Revised agreements filed by the Air Transport Association of America on behalf of several air carriers relative to incentive discounts for containerized shipments and related provisions; Docket 16080, Agreements CAB 19125 and 19126.

Pursuant to the provisions of section 412 of the Federal Aviation Act of 1958, the Air Transport Association of America (ATA) has filed two revised container agreements on behalf of certain air carriers for Board approval.

Following the Board's conditional order approving the carriers' earlier agreements on containerization,[1] the Board approved the request of American to authorize the carriers to hold further discussions on containerization and to consider the Board's disapproval of certain features of the initial agreements.[2]

As a result of a meeting held on August 22-23, 1966, two revised container agreements[3] on behalf of American, Airlift, Flying Tiger (Type B/C/D container agreement only), TWA and United have been filed with the Board.

Changes from the earlier agreements are as follows:

(1) The provisions excluding perishable traffic and shipments under 1,000 miles, and the provision for an additional 15 percent discount for specific commodity rate traffic previously disapproved by the Board have been omitted from the new agreements;

(2) The density minimum at which the unitization discount had previously been granted has been reduced from 10 pounds to 7 pounds per cubic foot;

(3) The previously agreed and approved density incentive for general commodity rate traffic in Type B/C/D containers only (i.e., all poundage in excess of the 10 pounds per cubic foot minimum density was granted an additional one-third discount) has been extended to the Type A (pallet-igloo) container;

(4) Container detention provisions have been incorporated as previously requested by the Board; and

(5) The containerization incentive discounts will now apply to the weight of the entire shipment and the normal weight break will apply to the noncontainerized portions of shipments, in lieu of rating containerized portions as separate shipments.

Although a motion requesting disapproval of the agreements was filed, this motion has now been withdrawn and no objections to the agreements are pending before the Board. Flying Tiger requests, however, that the parties to the agreements file monthly reports on container traffic.

Upon consideration of all relevant matters, the Board does not find Agreements CAB Nos. 19125 and 19126 to be adverse to the public interest or in violation of the Act and has determined to approve them. The revised agreements represent a substantially improved offering to the shipping public which may meet the carriers' own stated objectives of decreasing the number of pieces handled and increasing the average on-board density of their traffic.

The Board notes that some of its earlier suggestions (Order E-23798, supra) as to matters warranting further study by the carriers were not discussed or were not satisfactorily resolved at their meeting on August 22. The Board would urge the carriers to pursue these matters to a successful conclusion at an early date.

As before (Order E-23798, supra), we shall expect the carriers to maintain factual data as to traffic and revenue under their container program, including carrier-owned containers not embraced by these agreements, and will direct our staff to work with the carriers in the development of appropriate reporting standards and requirements.

Accordingly, pursuant to the Federal Aviation Act of 1958, and particularly sections 204(a), 412, and 414 thereof:

It is ordered, That:

Agreements CAB Nos. 19125 and 19126 are approved, provided that the parties thereto file the provisions thereof in tariffs marked to expire not later than December 31, 1967;

The amended motion filed by the Flying Tiger Line, Inc., in Docket No. 16080 is dismissed.

This order will be published in the FEDERAL REGISTER.

By the Civil Aeronautics Board.

[SEAL] HAROLD R. SANDERSON,
Secretary.

[F.R. Doc. 66-10432; Filed, Sept. 22, 1966; 8:46 a.m.]

[1] Agreements CAB Nos. 18600 and 18600-A1, approved by the Board on June 9, 1966, Order E-23798, were signed by Airlift International Airlines, Inc. (Airlift), American Airlines, Inc. (American), Delta Air Lines, Inc. (Delta), Eastern Air Lines, Inc. (Eastern), the Flying Tiger Line, Inc. (Flying Tiger), Trans World Airlines, Inc. (TWA), and United Air Lines, Inc. (United).

[2] Order E-23973 dated July 19, 1966.

[3] The revised agreements (CAB Nos. 19125 and 19126) supersede and cancel the prior agreements CAB Nos. 18600 and 18600-A1.

DELAWARE RIVER BASIN COMMISSION

COMPREHENSIVE PLAN AND 1968 BUDGET

Notice of Public Hearing

Notice is hereby given that the Delaware River Basin Commission will hold a public hearing on September 28, 1966. The hearing will take place in the top floor conference room of the State Office Building, Broad and Spring Garden Streets, Philadelphia, beginning at 2 p.m. The hearing will be on the following subjects:

A. A proposed fiscal year 1968 current expense budget in the amount of $1,054,000 and capital budget in the amount of $2,000.

B. A proposal to amend the Comprehensive Plan so as to include therein the following projects:

1. *New Hope-Lambertville Wing Dams.* Reconstruction of the existing wing dams in Bucks County, Pa., and Hunterdon County, N.J., as a means of restoring and maintaining the elevation of the existing pool upstream of the dams. The dams would be repaired and capped with reinforced concrete, and the present 450-foot opening reduced to its original size of approximately 300 feet.

2. *Langhorne Spring Water Co.* Four new wells to provide supplemental water supply for the Borough of Langhorne, Langhorne Manor, Penndel, and portions of Hulmeville Borough and Middletown Township, Bucks County, Pa. The new wells, designated "Wells Nos. 6, 10, 11,

and 13," are expected to yield a total of 335 gallons per minute.

3. *Delaware Township Municipal Utilities Authority.* Sewage treatment facilities to provide service to the Sergeantsville area, Hunterdon County, N.J. The new plant would provide tertiary treatment for a design flow of 60,000 gallons per day, and discharge to a tributary of Wickecheoke Creek.

4. *Washington Crossing Water Company.* A new well to provide supplemental water for the Washington Crossing Park Estates development in Hopewell Township, Mercer County, N.J. Withdrawals from the new and existing wells would be limited to 20,000 gallons daily.

A summary of the proposed 1968 budget is available from the Commission upon request. Documents relating to the other projects listed for hearing may be examined at the Commission's offices. All persons wishing to testify are requested to register in advance with the Secretary to the Commission, Telephone 609–883–9500.

W. BRINTON WHITALL,
Secretary.

SEPTEMBER 16, 1966.

[F.R. Doc. 66–10412; Filed, Sept. 22, 1966; 8:45 a.m.]

FEDERAL COMMUNICATIONS COMMISSION

[Docket Nos. 16826, 16827; FCC 66M–1240]

BRANCH ASSOCIATES, INC., AND ASCENSION PARISH BROADCASTING CO.

Order Regarding Procedural Dates

In re applications of Branch Associates, Inc., Houma, La.; Docket No. 16826, File No. BP–16701; R. E. Hook, trading as Ascension Parish Broadcasting Co., Donaldsonville, La.; Docket No. 16827, File No. BP–17035; for construction permits.

A prehearing conference having been held on September 16, 1966, at which certain agreements were reached and certain rulings were made;

It is ordered, This 16th day of September 1966, that:

(1) On or before October 21, 1966, there shall be an exchange of the applicants' nonengineering exhibits and a preliminary exchange of the applicants' engineering exhibits in support of their direct cases on Issues No. 1 and 2;

(2) On or before November 14, 1966, there shall be a final exchange of the applicants' engineering exhibits in support of their direct cases on Issues No. 1 and 2, and of all exhibits in support of the applicants' direct cases on Issues No. 4 and 5; and,

(3) On November 21, 1966, at 9 a.m. there shall be convened a further prehearing conference at which the parties shall reargue in light of the exchanged exhibits whether evidence is to be adduced directed to Issue No. 3; and,

It is further ordered, That the hearing now scheduled to commence on October 19, 1966, is continued pending further order.

Released: September 16, 1966.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
Secretary.

[F.R. Doc. 66–10442; Filed, Sept. 22, 1966; 8:47 a.m.]

[Docket No. 16690; FCC 66M–1245]

DAILY EXPRESS, INC., ET AL.

Order Scheduling Hearing

In the matter of Daily Express, Inc., Post Office Box 39, Carlisle, Pa.; Complainant versus American Telephone & Telegraph Co., 195 Broadway, New York, N.Y., The Bell Telephone Company of Pennsylvania, One Parkway, Philadelphia, Pa.; The United Telephone Company of Pennsylvania, Carlisle, Pa.; Defendants; Docket No. 16690.

It is ordered, This 19th day of September, 1966, that Jay A. Kyle shall serve as Presiding Officer in the above-entitled proceeding; that the hearings therein shall be convened on November 9, 1966, at 10 a.m.; and that a prehearing conference shall be held on October 5, 1966, commencing at 10 a.m.: *And, it is further ordered,* That all proceedings shall be held in the Offices of the Commission Washington, D.C.

Released: September 20, 1966.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
Secretary.

[F.R. Doc. 66–10443; Filed, Sept. 22, 1966; 8:48 a.m.]

[Docket Nos. 16869, 16870; FCC 66M–1248]

MEROCO BROADCASTING CO. AND MID-WESTERN RADIO CORP.

Order Scheduling Hearing

In re applications of Meroco Broadcasting Co., Greeley, Colo.; Docket No. 16869, File No. BPH–5266; The Mid-Western Radio Corp., Greeley, Colo.; Docket No. 16870, File No. BPH–5336; for construction permits.

It is ordered, This 19th day of September, 1966, that Millard F. French shall serve as Presiding Officer in the above-entitled proceeding; that the hearings therein shall be convened on November 21, 1966, at 10 a.m.; and that a prehearing conference shall be held on October 7, 1966, commencing at 9 a.m.: *And, it is further ordered,* That all proceedings shall be held in the Offices of the Commission, Washington, D.C.

Released: September 20, 1966.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
Secretary.

[F.R. Doc. 66–10444; Filed, Sept. 22, 1966; 8:48 a.m.]

[Docket Nos. 16869, 16870; FCC 66–828]

MEROCO BROADCASTING CO. AND MID-WESTERN RADIO CORP.

Order Designating Applications for Consolidated Hearing on Stated Issues

In re applications of Meroco Broadcasting Co., Greeley, Colo.; Docket No. 16869, File No. BPH–5266; Requests: 92.3 mc, No. 222; 27.1 kw; 223 ft.; The Mid-Western Radio Corp., Greeley, Colo.; Docket No. 16870, File No. BPH–5336; Requests: 92.3 mc, No. 222; 32 kw; 193 ft.; for construction permits.

At a session of the Federal Communications Commission held at its offices in Washington, D.C., on the 14th day of September 1966;

1. The Commission has before it for consideration (a) the above captioned and described applications which are mutually exclusive in that operation by the applicants as proposed would cause mutually destructive interference and (b) "Petition for Special Relief" filed by Mullins Broadcasting Co. ("Mullins") licensee of Denver, Colo. television station KBTV.

2. Mullins urges the Commission to require Meroco to conduct site tests to determine the likelihood of interference to KBTV's signal. Pending completion of such tests Mullins requests that action on the application be withheld. This request is based on Mullins' contention that Meroco, operating from its proposed site 2 miles northwest of Greeley, Colo., is likely to cause interference to its Grade A television service to Greeley. However, as Mullins apparently recognizes, since the second harmonic of the proposed station would fall 1.4 mc below its TV operation on Channel 9, no such interference would result. Thus, the Commission's policy statement regarding the creation of second harmonic interference to which it refers, is inapplicable. Likewise, Mullins' concern about the possible blanketing caused by Meroco's proposed operation appears to be unwarranted. As § 73.315(e) of the Commission's rules states, present information has not been adequate to establish "blanket areas" of FM stations. Nevertheless, that rule does require a supplemental showing when the residential location of a transmitter site indicates that excessive blanketing problems could be anticipated. According to the undisputed information in Meroco's application, only 27 persons are located within 0.25 mile of the transmitter and 108 within 0.5 mile of transmitter. Thus, there is no basis for anticipating excessive blanketing from Meroco's proposed operation, and under these circumstances, the relief requested in Mullins' petition will be denied.

3. Since no determination has yet been reached on whether the antenna proposed by Meroco Broadcasting Co. would constitute a menace to air navigation, an issue regarding this matter is required.

4. Except as indicated below, the applicants are qualified to construct and operate as proposed. However, because of their mutual exclusivity, the Commis-

sion is unable to make the statutory finding that a grant of the applications would serve the public interest, convenience and necessity, as is of the opinion that the applications must be designated for hearing on the issues set forth below.

It is ordered, That, pursuant to section 309(e) of the Communications Act of 1934, as amended, the applications are designated for hearing in a consolidated proceeding, at a time and place to be specified in a subsequent order, upon the following issues:

1. To determine whether there is a reasonable possibility that the tower height and location proposed by Meroco Broadcasting Co. would constitute a menace to air navigation.

2. To determine, if issue number one is resolved in Meroco Broadcasting Co.'s favor, which of the proposals would better serve the public interest.

3. To determine, in the light of the evidence adduced pursuant to the foregoing issues which of the applications should be granted.

It is further ordered, That the petition for special relief filed by Mullins Broadcasting Co. is denied.

It is further ordered, That the Federal Aviation Agency is made a party to the proceeding.

It is further ordered, That to avail themselves of the opportunity to be heard, the applicants and party respondent herein pursuant to § 1.221(c) of the Commission's rules, in person or by attorney, shall within 20 days of the mailing of this order, file with the Commission in triplicate, a written appearance stating an intention to appear on the date fixed for the hearing and present evidence on the issues specified in this order.

It is further ordered, That the applicants herein shall, pursuant to section 311(a)(2) of the Communications Act of 1934, as amended, and § 1.594 of the Commission's rules, give notice of the hearing, either individually or, if feasible and consistent with the rules, jointly, within the time and in the manner prescribed in such rule, and shall advise the Commission of the publication of such notice as required by § 1.594(g) of the rules.

Released: September 19, 1966.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
Secretary.

[F.R. Doc. 66-10445; Filed, Sept. 22, 1966; 8:48 a.m.]

FEDERAL POWER COMMISSION

[Docket No. CI65-974, etc.]

GEORGE DESPOT, ET AL.

Order To Show Cause

SEPTEMBER 14, 1966.

George Despot, agent (Operator), et al., Docket No. CI65-974; Maxwell Herring Drilling Corp. (Operator), et al., Docket No. CI65-1176; Skelly Oil Co., Docket No. CI66-468; Phillips Petroleum Co., Docket No. CI66-500; International Helium, Inc. (Operator), et al., Docket No. CI66-564; J. W. Baton (Operator), et al., Docket No. CI66-1169; W. R. Hughey Operating Co., agent (Operator), et al., Docket No. CI66-1170; Robbins Petroleum Corp. (Operator), et al., Docket No. CI66-1208; B. Reagan McLemore, et al., Docket No. CI66-1220; Trice Production Co. (Operator), et al., Docket No. CI66-1228; Phillips Petroleum Co., Docket No. CI66-498; Texaco, Inc., Docket No. CI66-536, CI66-537; Humble Oil & Refining Co., Docket No. CI66-591; Phillips Petroleum Co., Docket No. CI66-1038; Northern Pump Co. (Operator), et al., Docket No. CI66-1124; Forest Oil Corp. (Operator), et al., Docket No. CI66-1159; Forest Oil Corp., Docket No. CI66-1160; Gulf Oil Corp., Docket No. CI66-68.

Each of the above-captioned proceedings concerns an application for a certificate of public convenience and necessity filed under section 7 of the Natural Gas Act to make sales of natural gas which appear to be similar to the so-called sales restricted by contract to compressor fuel or company use only, which are the subject of the Supreme Court's decision in California v. Lo-Vaca Gathering Co., et al., 379 U.S. 366. The aforesaid sales are being made from three separate areas, i.e., Texas Railroad District No. 4, South Louisiana, and Texas Railroad District No. 6, all as more fully described in the Appendix attached hereto and in the respective applications which are on file with the Commission and open to public inspection.

All of the above sales are presently being made and initial service commenced without authorization by the Federal Power Commission. It appears that all sales except those to Lone Star Gas Co. may be classified as sales purportedly restricted by contract for compressor fuel or company use within the State of purchase by the pipeline but commingled with gas purchased from other producers which is moving in interstate commerce. The sales to Lone Star are likewise sales restricted by contract for intrastate use but Applicant indicates that Lone Star commingles such gas with natural gas purchased from other producers and that some of such commingled gas is transported to points in states other than that state in which such gas is produced and sold by Applicant.

All Applicants indicate that they have heretofore considered that their sales were nonjurisdictional and that no filings with the Commission were required in connection therewith. However, each of the Applicants was advised by letter that on the basis of information furnished by the purchasing pipelines such sales appear to come within the scope of the Supreme Court's decision in California v. Lo-Vaca Gathering Co., et al. (supra), holding that sales of this type are jurisdictional and requesting that each Applicant promptly submit the necessary certificate application. Various of the Applicants have specifically indicated that their application is submitted in response to, and in compliance with, said Commission letter but that a certificate is requested only in event that, after examination of said contract, the Commission determines that said sale does, in fact, come within the scope of Lo-Vaca.

The Commission finds:

(1) It is necessary and appropriate to carry out the provisions of the Natural Gas Act that the above-captioned Applicants appear and show cause, if any, as hereinafter ordered, why they should not be required to apply for and obtain, nunc pro tunc, certificates of public convenience and necessity authorizing the sales of gas which they have been making without authorization.

(2) It is appropriate and in the public interest that the above-captioned matters be consolidated for hearing and decision as hereinafter ordered.

(3) The expeditious disposition of these proceedings may be effectuated by holding a prehearing conference and to that end a prehearing conference should be held on October 26, 1966, as hereinafter ordered.

The Commission orders:

(A) The above-entitled Applicants shall appear and show cause, if any there be, at a public hearing to be held in a hearing room of the Federal Power Commission, 441 G Street NW., Washington, D.C., commencing November 14, 1966, at 10 a.m., e.d.t., why they should not be required to apply for, and obtain, nunc pro tunc, certificates of public convenience and necessity authorizing them to make the sales specified in their respective applications which they have previously made without authorization, and whether the initial price for such sales should not be fixed at the appropriate in-line price prevailing at the date deliveries commenced for the area in which such sales are being made, i.e., South Louisiana, Texas District No. 4, and Texas District No. 6.

(B) The above-named respondents shall also appear and show cause at the above-ordered hearing why they should not be required to refund the difference between the initial price determined in accordance with paragraph (A) above and the price actually charged for the related deliveries of gas. The date from which refunds shall be made, if any, by the respondents, shall be determined in this proceeding and evidence may be offered by any party as to the appropriate amount of refunds, if any, and the date from which liability for such refunds should be fixed.

(C) The above-captioned matters are hereby consolidated for the purposes of hearing and decision.

(D) Pursuant to the provisions of § 1.18 of the Commission's rules of practice and procedure, a prehearing conference before a duly designated presiding examiner shall commence at 10:00 a.m., e.d.s.t., on October 26, 1966, in a hearing room of the Federal Power Commission, 441 G Street NW., Washington, D.C., for the purpose of effectuating the ex-

peditious disposition of these consolidated proceedings.

(E) The purpose of such conference shall be to consider all matters at issue in the above dockets, the manner in which evidence shall be presented, to fix dates for the distribution of such evidence, to fix the date on which the consolidated hearing shall commence, and to consider any and all matters which might contribute to an expeditious disposition of these consolidated proceedings.

(F) Pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act and the Commission's rules of practice and procedure, a hearing will be held on a date to be fixed by the presiding examiner in accordance with paragraph (B) above, in a hearing room of the Federal Power Commission, 441 G Street NW., Washington, D.C., concerning the matters involved in and the issues presented by such applications.

(G) Protests or petitions to intervene may be filed with the Federal Power Commission, Washington, D.C., in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) on or before October 14, 1966. Protestants and Petitioners shall state with particularity the dockets in which they claim to have an interest.

By the Commission.

[SEAL] JOSEPH H. GUTRIDE, *Secretary.*

APPENDIX A

Docket No. and date filed	Seller	Date of— Contract	Date of— Initial delivery	Sales area	Price provisions of proposed rate schedule with effective dates: Initial	Price provisions of proposed rate schedule with effective dates: Increased	Initial service rates*
SALES TO LONE STAR GAS CO.[12]							
CI65-974 4-5-65	George Despot, agent (Operator), et al	4- 5-60	[4] 5- 1-60	R.R. District 6	[6] 14.49	[6] 16.56	[6] 15.0
CI65-1176 5-7-65	Maxwell Herring Drilling Corp. (Operator), et al	5- 4-60	[4] 6- 1-60	do	[5] 1-60 14.49	7-1-63 [6] 16.56	[6] 15.0
CI66-468 12-1-65	Skelly Oil Co.[4]	9-13-61	10- 1-61	do	[6] 6-1-60 14.49	7-1-63 [6] 16.56	[6] 15.0
CI66-500 12-9-65	Phillips Petroleum Co	1-11-60	[4] 2- 1-60	do	[4] 10-1-61 14.49	7-1-63 [6] 16.56	[6] 15.0
CI66-564 1-3-66	International Helium, Inc. (Operator), et al	[14 15] 1-11-60	[4] 2- 1-61	do	[4] 2-1-60 [6] 14.49	7-1-63 [5 6] 16.56	[6] 15.0
CI66-1169 5-23-66	J. W. Baton (Operator), et al	3-20-61	[4] 4-1-61	do	[6] 14.49	7-1-63 [5 6] 16.56	[6] 15.0
CI66-1170 5-23-66	W. R. Hughey Operating Co., agent (Operator), et al	[14 17] 1-11-60	[4] 2-1-61	do	[4] 4-1-61 [6] 14.49	7-1-63 [5 6] 16.56	[6] 15.0
CI66-1208 5-27-66	Robbins Petroleum Corp. (Operator), et al	[14 18] 1-11-60	[4] 5-1-63	do	[4] 2-1-61 [6] 14.49	7-1-63 [5 6] 16.56	[6] 15.0
CI66-1220 5-27-66	B. Reagan McLemore, et al	[20 21] 11- 1-60	[4] 10-1-61	do	[4] 5-1-63 [6] 14.49	7-1-63 [5 6] 16.56	[6] 15.0
CI66-1228 5-27-66	Trice Production Co. (Operator), et al	[19] 9-13-61	[7] 10-1-61	do	[4] 10-1-61 [6] 14.49 [7] 10-1-61	7-1-63 [5 6] 16.56 7-1-63	[6] 15.0

APPENDIX A

Docket No. and date filed	Seller	Date of— Contract	Date of— Initial delivery	Sales area	Price provisions of proposed rate schedule with effective dates: Initial	Price provisions of proposed rate schedule with effective dates: Increased	In-line ceiling [23]
SALES TO FLORIDA GAS TRANSMISSION CO.[7]							
CI66-498 12-8-65	Phillips Petroleum Co	8-27-56	8- 2-59	A.R. District 4	16.5 8-2-59	[5] 17.5 7-1-62	[6] 15.0
SALES TO COLUMBIA GULF TRANSMISSION CO.[3]							
CI66-536 12-23-65	Texaco, Inc	9-30-60	[4] 11- 1-60	South Louisiana	[5 6] 23.55 [4] 11-1-60	[6] 25.05 11-1-64	[6] 20.0
CI66-537 12-23-65	do	1-30-61	[4] 3- 1-61	do	[5 6] 23.55 [4] 3-1-61	[6] 25.05 11-1-64	[6] 20.0
SALES TO TENNESSEE GAS PIPELINE CO., A DIVISION OF TENNECO, INC.[8]							
CI66-591 1-10-66	Humble Oil & Refining Co	3- 5-62	5-15-62	Offshore South Louisiana Zone 2.	[9] 19.5 5-15-62	[10] 20.5 5-15-65	18.5
CI66-1038 4-26-66	Phillips Petroleum Co	11-27-56	[4] 1- 1-57	R.R. District 4	12.1227 [4] 1-1-57	[11] 17.2435 1-1-60	[6] 15.0
CI66-1124 5-12-66	Northern Pump Co. (Operator), et al	10- 1-59	2- -60	do		[5 12] 17.0 11-1-64	[6] 15.0
CI66-1159 5-20-66	Forest Oil Corp. (Operator), et al	10- 1-59	[4] 2- -60	do	17.2435 2- -60	[6] 19.2435 11-1-64	[6] 15.0
CI66-1160 5-20-66	Forest Oil Corp	10- 1-59	[4] 2- -60	do	17.2435 2- -60	[6] 19.2435 11- 1-64	[6] 15.0
					17.2435 2- -60	[6] 19.2435 11- 1-64	

See footnotes at end of table.

APPENDIX A—Continued

Docket No. and date filed	Seller	Date of— Contract	Date of— Initial delivery	Sales area	Price provisions of proposed rate schedule with effective dates— Initial	Price provisions of proposed rate schedule with effective dates— Increased	In-line ceiling [23]
SALES TO TRANSCONTINENTAL GAS PIPE LINE CORP.							
CI66-68..... CI66-68 7-21-65	Gulf Oil Corp.....	10- 8-57	1-10-58	South Louisiana.....	[6] [22] 22.80 1-10-58	[6] [22] 24.80 7- 1-62	[8] 20.0

*Statement of general policy No. 61-1—Texas District No. 6.
[3] Presently Columbia Gulf, who only transports gas, is not obligated to flow through any refunds collected. Docket No. G-20241, 3-27-61, 25 FPC 589 as modified FPC 1007.
[4] Assumed. Actual date not stated in application or filings.
[5] Proposed price.
[6] Inclusive of tax reimbursement.
[7] Due to Florida Gas' deficient financial position they are not presently required to flow through any refunds collected. Docket Nos. 9262 et al., 6-8-62, 27 FPC 1123.
[8] Presently TGP is obligated to flow through any refunds collected after the aggregate of such refunds received totals $1,000,000 or more. Docket Nos. G-11980 et al., 12-21-62, 28 FPC 1100 as amended 1-11-63, 29 FPC 65.
[9] The only price provided for by basic contract.
[10] Price increase by contractual amendment dated 4-8-63 which also extended term of basic contract from 3 years to 12-31-70.
[11] Redetermined price contractually effective for period 1-1-60 to 11-1-64.
[12] Redetermined price contractually effective for period 11-1-64 to 11-1-69.
[13] Presently Lone Star is obligated to flow through only those refunds collected with respect to producer gas which it resells to Natural Gas Pipeline Co. of America. Order issued Dec. 1, 1961, in Docket No. RP60-4.
[14] Phillips Petroleum Co., signatory seller.
[15] International Helium, Inc., acquired the acreage from Fred Whitaker via assignment dated 7-31-64. By agreement notarized on 1-5-61, Whitaker ratified Phillips' 1-11-60 contract.
[17] By agreement notarized on 1-1-61, the et al. Parties ratified Phillips' 1-11-60 contract.
[18] John C. Robbins, Jr., acquired the acreage subject to the 1-11-60 contract via assignments dated 4-11-63. 11-2-64 and 12-2-64 and reassigned part of interests to Robbins Petroleum Corp. et al., by assignments dated 8-13-63 and 11-2-64.
[19] Trice Production Co., John C. Robbins, Jr., et al. signatory sellers.
[20] Texaco, Inc., signatory seller.
[21] By agreement notarized on 9-21-61, B. Reagan McLemore, et al. Ratified the 11-1-60 Texaco contract.
[22] Prices under contract dated 10-8-57.
[23] R.R. district 4—in-line—15 cents (see Op. No. 362, 383, et al.), for contracts dated prior to Sept. 28, 1960, and 16 cents for contracts dated thereafter. Southern Louisiana—in-line—20 cents, onshore (Op. No. 436). Southern Louisiana—offshore—18.5 cents (Op. No. 436).
NOTE.—Footnotes 1, 2, and 16 have been deleted.

[F.R. Doc. 66-10385; Filed, Sept. 22, 1966; 8:45 a.m.]

[Docket No. RI67-58, etc.]

TEXACO INC., ET AL.

Order Providing for Hearings on and Suspension of Proposed Changes in Rates [1]

SEPTEMBER 14, 1966.

The Respondents named herein have filed proposed increased rates and charges of currently effective rate schedules for sales of natural gas under Commission jurisdiction, as set forth in Appendix A hereof.

The proposed changed rates and charges may be unjust, unreasonable, unduly discriminatory, or preferential, or otherwise unlawful.

[1] Does not consolidate for hearing or dispose of the several matters herein.

The Commission finds: It is in the public interest and consistent with the Natural Gas Act that the Commission enter upon hearings regarding the lawfulness of the proposed changes, and that the supplements herein be suspended and their use be deferred as ordered below.

The Commission orders:

(A) Under the Natural Gas Act, particularly sections 4 and 15, the regulations pertaining thereto (18 CFR Ch. I), and the Commission's rules of practice and procedure, public hearings shall be held concerning the lawfulness of the proposed changes.

(B) Pending hearings and decisions thereon, the rate supplements herein are suspended and their use deferred until date shown in the "Date Suspended Until" column, and thereafter until made effective as prescribed by the Natural Gas Act.

(C) Until otherwise ordered by the Commission, neither the suspended supplements, nor the rate schedules sought to be altered, shall be changed until disposition of these proceedings or expiration of the suspension period.

(D) Notices of intervention or petitions to intervene may be filed with the Federal Power Commission, Washington, D.C. 20426, in accordance with the rules of practice and procedure (18 CFR 1.8 and 1.37(f)) on or before November 2, 1966.

By the Commission.

[SEAL] JOSEPH H. GUTRIDE, *Secretary.*

APPENDIX A

Docket No.	Respondent	Rate schedule No.	Supplement No.	Purchaser and producing area	Amount of annual increase	Date filing tendered	Effective date unless suspended	Date suspended until—	Cents per Mcf— Rate in effect	Cents per Mcf— Proposed increased rate	Rate in effect subject to refund in docket Nos.
RI67-58.....	Texaco Inc., Post Office Box 2420, Tulsa, Okla. 74102.	11	[7] 6	Northern Natural Gas Co., (Guymon-Hugoton Field, Texas County, Okla.), (Panhandle Area).	$275	8-15-66	[2] 9-15-66	2-15-67	[4] [6] 11.0	[5] [6] 12.0	
.....do.....		106	[7] 9	Northern Natural Gas Co., (Hugoton Field, Morton County, Kans.).	54	[3] 8-15-66	[2] 9-15-66	2-15-67	[4] [6] 11.0	[5] [6] 12.0	
.....do.....		107	[7] 9	Northern Natural Gas Co., (Hugoton Field, Seward County, Kans.).	89	[3] 8-15-66	[2] 9-15-66	2-15-67	[4] [6] 11.0	[5] [6] 12.0	
.....do.....		108	[7] 9	Northern Natural Gas Co., (Hugoton Field, Morton County, Kans.).	55	[3] 8-15-66	[2] 9-15-66	2-15-67	[4] [6] 11.0	[5] [6] 12.0	
.....do.....		109	[7] 9	.....do.....	84	[3] 8-15-66	[2] 9-15-66	2-15-67	[4] [6] 11.0	[5] [6] 12.0	
.....do.....		110	[7] 9	Northern Natural Gas Co., (Hugoton Field, Seward County, Kans.).	69	[3] 8-15-66	[2] 9-15-66	2-15-67	[4] [6] 11.0	[5] [6] 12.0	
.....do.....		300	3	Lone Star Gas Co., (Manziel Field, Wood County, Tex.) (R.R. District No. 6).	5,486	8-22-66	[2] 9-22-66	2-22-67	[6] [10] 14.49	[6] [9] [10] 16.56	
.....do.....		9	21	Northern Natural Gas Co., (West Panhandle Field, Carson County, Tex.) (R.R. District No. 10).	543	8-29-66	[2] 9-29-66	2-29-67	12.4239	[5] 12.9487	RI66-329.
RI67-59.....	Texaco Inc., (Operator), et al.	299	4	Lone Star Gas Co. (West Chapel Hill Field, Smith County, Tex.) (R.R. District No. 6).	8,694	8-22-66	[2] 9-22-66	2-22-67	[6] [10] 14.49	[6] [9] [10] 16.56	

See footnotes at end of table.

APPENDIX A—Continued

Docket No.	Respondent	Rate schedule No.	Supplement No.	Purchaser and producing area	Amount of annual increase	Date filing tendered	Effective date unless suspended	Date suspended until—	Cents per Mcf: Rate in effect	Cents per Mcf: Proposed increased rate	Rate in effect subject to refund in docket Nos.
RI67-60	The Shamrock Oil & Gas Corp., Post Office Box 631, Amarillo, Tex. 79105.	17	3	Northern Natural Gas Co. (Steele No. 1 Well, Hansford County, Tex.) (R.R. District No. 10).	1,286	8-22-66	[11] 10- 1-66	3- 1-67	[5] 16.5	[4 5 9] 17.5	RI62-38.
RI67-61	Robert F. White (Operator), et al., 714 Union Center Bldg., Wichita, Kans. 67202.	5	4	Cities Service Gas Co. (Traffas Field, Barber County, Kans.).	864	8-22-66	[11] 9-22-66	2-22-67	[5] 12.0	[4 5 12] 14.0	
	do	2	1	Panhandle Eastern Pipe Line Co. (Grunder Pool, Stafford County, Kans.).	270	8-29-66	[2] 9-29-66	2-29-67	15.0	[4 9] 16.0	
RI67-62	Ashland Oil & Refining Co., Post Office Box 18695, Oklahoma City, Okla. 73118.	132	6	Kansas-Nebraska Natural Gas Co., Inc. (Grand Valley (Camrick) Field, Texas County, Okla.) (Panhandle Area).	60	8-19-66	[11] 10- 1-66	3- 1-67	[5] 17.8	[5 4 9] 18.0	RI66-286.
RI67-63	Sohio Petroleum Co., 970 First National Annex, Oklahoma City, Okla. 73102, Attn: Gas-Gasoline Division.	31	5	Panhandle Eastern Pipe Line Co. (Light Pool Field, Beaver County, Okla.) (Panhandle Area).	29	8-25-66	[11] 11- 9-66	4- 9-67	13.17607	[4 9] 14.06936	RI66-276.
	do	39	10	do	185	8-25-66	[11] 11- 9-66	4- 9-67	[5] 13.17607	[4 5 9] 14.06936	RI66-276.
RI67-64	Sharples & Co. Properties (Operator), et al., 1001-1700 Broadway, Denver, Colo. 80202.	4	7	Northern Natural Gas Co. (North Hansford Field, Hansford County, Tex.) (R.R. District No. 10).	20,500	8-29-66	[14] 10- 1-66	3- 1-67	[5] 16.5	[4 5 9] 17.5	RI62-34.
RI67-65	A. L. Abercrombie (Operator), et al., 801 Union Center Bldg., Wichita, Kans. 67202.	15	2	Panhandle Eastern Pipe Line Co. (Borchers Northwest Field, Meade County, Kans.).	720	8-26-66	[2] 9-26-66	2-26-67	[5] 16.0	[4 5 9] 17.0	
RI67-66	Tidewater Oil Co., Post Office Box 1404, Houston, Tex. 77001, Attn: Mr. A. M. Mouser.	61	5	Michigan Wisconsin Pipe Line Co. (North Holly Beach Field, Cameron Parish, La.) (South Louisiana).	6,142	8-22-66	[11] 9-22-66	2-22-67	[15 16] 19.0	[13 14 15] 20.0	
RI67-67	The Superior Oil Co., Post Office Box 1521, Houston, Tex. 77001, Attn: H. W. Varner, Esq.	6	[17] 10	United Gas Pipe Line Co. (Cabeza Creek Area, Goliad, De Witt, and Karnes Counties, Tex.). (R.R. District No. 2).	579	8-22-66	[11] 9-22-66	2-22-67	14.5	[4 6] 16.7158	RI61-97.

[2] The stated effective date is the first day after expiration of the statutory notice.
[3] Redetermined rate increase.
[4] Pressure base is 14.65 p.s.i.a.
[5] Subject to a downward B.t.u. adjustment.
[6] Settlement rate approved by Commission order issued Dec. 30, 1963, in Docket Nos. G-8767, et al. Filing moratorium ended Mar. 1, 1966.
[7] Includes Letter Agreement dated Apr. 22, 1966 (Rate Schedule Nos. 11, 106, 107, 108, and 110) and Feb. 3, 1966 (Rate Schedule No. 109), which provides for proposed increased rate.
[8] Filing not completed until Aug. 29, 1966.
[9] Periodic rate increase.
[10] Includes 0.49 cent tax reimbursement before increase and 0.56 cent tax reimbursement after increase.
[11] The stated effective date is the effective date proposed by Respondent.
[12] Renegotiated rate increase.
[13] "Fractured" rate increase. Tidewater contractually entitled to a rate of 20.5 cents, plus 1.5 cents tax reimbursement.
[14] Pressure base is 15.025 p.s.i.a.
[15] Inclusive of 1.0 cent tax reimbursement.
[16] Settlement rate as provided by Commission order issued June 15, 1962, as amended, in Docket Nos. G-13310, et al. Moratorium expired Dec. 31, 1963.
[17] Includes Letter Agreement dated Mar. 28, 1966 providing for the redetermined rate.

Texaco Inc. (Texaco) requests an effective date of August 10, 1966, for Supplement No. 6 to its FPC Gas Rate Schedule No. 11, and Supplement No. 9 to its FPC Gas Rate Schedule Nos. 106, 107, 108, 109, and 110; an effective date of September 1, 1966, for Supplement No. 3 to its FPC Gas Rate Schedule No. 300, and a retroactive effective date of July 1, 1966, for Supplement No. 21 to its FPC Gas Rate Schedule No. 9. Texaco Inc. (Operator), et al., request that their proposed rate increase be permitted to become effective as of September 1, 1966. Robert F. White (Operator), et al. (White), request a retroactive effective date of August 1, 1966, for Supplement No. 1 to White's FPC Gas Rate Schedule No. 2. A. L. Abercrombie (Operator), et al., request that their rate increase be permitted to become effective as of September 1, 1966. Good cause has not been shown for waiving the 30-day notice requirement provided in section 4(d) of the Natural Gas Act to permit earlier effective dates for the aforementioned producers' rate filings and such requests are denied.

Tidewater Oil Co. (Tidewater) proposes a "fractured" rate increases, from a 19.0-cent settlement rate, approved by Commission order issued June 15, 1962, in Dockets Nos. G-13310, et al., to a 20.0-cent rate, inclusive of tax reimbursement. Tidewater is contractually entitled to a rate of 20.5 cents, plus applicable tax reimbursement, but is limiting its increase to 1.0 cent so as not to be in conflict with the aforementioned settlement order. The settlement order permits Tidewater to place in effect after June 30, 1964, rate increases of not more than 1.0 cent every 4 years under this rate schedule. Since the proposed rate exceeds the area increased ceiling level for South Louisiana as announced in the Commission's statement of general policy No. 61-1, as amended, it is suspended for 5 months from September 22, 1966, the proposed effective date, as ordered herein.

All of the producers' proposed increased rates and charges exceed the applicable area price levels for increased rates as set forth in the Commission's statement of general policy No. 61-1, as amended (18 CFR 2.56).

[F.R. Doc. 66-10389; Filed, Sept. 22, 1966; 8:45 a.m.]

[Project 2379]

LONE STAR CEMENT CORP.

Notice of Land Withdrawal; Washington

SEPTEMBER 19, 1966.

Conformable to the provisions of section 24, as amended, notice is hereby given that the lands hereinafter described insofar as title thereto remains in the United States, are included in Power Project No. 2379 for which completed application for license (major) was filed December 13, 1965, by Lone Star Cement Corp., New York, N.Y. Under said section 24 these lands are from the date of filing of said application, reserved from entry, location or other disposal under the laws of the United States until otherwise directed by this Commission or by Congress.

WILLAMETTE MERIDIAN, WASHINGTON

All unsurveyed lands of the United States as delimited on revised maps, Exhibit J, drawings WC-FF-1019 and -1020, and Exhibit K, drawings WC-FF-1005, -1006, and -1007 (FPC Nos. 2379-14, -15, -16, -17, and -18, respectively), and which when surveyed, will probably embrace portions of the following described subdivisions:

T. 37 N., R. 8 E.,
Sec. 22: SE¼SE¼;
Sec. 26: W½W½;
Sec. 27: NE¼NE¼;
Sec. 35: W½NW¼, N½SW¼, SE¼SW¼.

The area reserved pursuant to the filing of this application is approximately 33.41 acres, entirely located within the Mount Baker National Forest.

Copies of the afore-mentioned revised maps have been transmitted to the Forest Service, the Bureau of Land Management, and the Geological Survey.

JOSEPH H. GUTRIDE,
Secretary.

[F.R. Doc. 66-10415; Filed, Sept. 22, 1966; 8:45 a.m.]

[Docket No. CP66-311]

OHIO FUEL GAS CO.

Notice of Petition To Amend

SEPTEMBER 16, 1966.

Take notice that on September 12, 1966, the Ohio Fuel Gas Co. (Petitioner), 99 North Front Street, Columbus, Ohio 43215, filed in Docket No. CP66-311 a petition to amend the order issued in the instant docket on August 30, 1966, by requesting authorization for the construction and operation of an additional replacement on its existing transmission system in the State of Ohio to enable Petitioner to provide increased capacity to serve the growing requirements of an existing market, and to assure adequate market service, all as more fully set forth in the petition which is on file with the Commission and open to public inspection.

Specifically, Petitioner proposes to construct and operate 1.51 miles of 8⅝-inch O.D. X.172-inch wall pipeline in Mahoning County, Ohio, replacing a section of 4½-inch O.D. and 6⅝-inch O.D. Line V-50 serving the Canfield market area, together with valves, fittings, and incidental facilities necessary for practical operation.

The total estimated cost of the proposed facilities is $52,000 which cost will be financed from cash on hand.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington, D.C. 20426, in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) and the regulations under the Natural Gas Act (§ 157.10) on or before October 14, 1966.

JOSEPH H. GUTRIDE,
Secretary.

[F.R. Doc. 66-10416; Filed, Sept. 22, 1966; 8:45 a.m.]

[Docket No. CP67-60]

EL PASO NATURAL GAS CO.

Notice of Application

SEPTEMBER 16, 1966.

Take notice that on September 12, 1966, El Paso Natural Gas Co. (Applicant), Post Office Box 1492, El Paso, Tex. 79999, filed in Docket No. CP67-60 a budget-type application pursuant to section 7(c) of the Natural Gas Act, as implemented by § 157.7(b) of the regulations under the Act, for a certificate of public convenience and necessity authorizing the construction, during the calendar year 1967, and operation of certain gas purchase facilities to enable Applicant to attach to its Southern Division System natural gas which will be purchased from authorized independent producers, all as more fully set forth in the application which in on file with the Commission and open to public inspection.

Applicant specifically proposes to construct and operate routine field facilities, subject to the jurisdiction of the Commission, necessary to connect Applicant's Southern Division System with the facilities of independent producers or other similar sellers authorized by the Commission to sell natural gas to Applicant for resale in interstate commerce.

The aggregate cost for all facilities proposed herein will not exceed $2,000,000 and the total cost for any one project will not exceed $500,000.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington, D.C. 20426, in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) and the regulations under the Natural Gas Act (§ 157.10) on or before October 14, 1966.

Take further notice that, pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act and the Commission's rules of practice and procedure, a hearing will be held without further notice before the Commission on this application if no protest or petition to intervene is filed within the time required herein, if the Commission on its own review of the matter finds that a grant of the certificate is required by the public convenience and necessity. If a protest or petition for leave to intervene is timely filed, or if the Commission on its own motion believes that a formal hearing is required, further notice of such hearing will be duly given.

Under the procedure herein provided for, unless otherwise advised, it will be unnecessary for Applicant to appear or be represented at the hearing.

JOSEPH H. GUTRIDE,
Secretary.

[F.R. Doc. 66-10427; Filed, Sept. 22, 1966; 8:46 a.m.]

[Docket No. CP67-61]

EL PASO NATURAL GAS CO.

Notice of Application

SEPTEMBER 16, 1966.

Take notice that on September 12, 1966, El Paso Natural Gas Co. (Applicant), Post Office Box 1492, El Paso, Tex. 79999, filed a budget-type application pursuant to section 7(c) of the Natural Gas Act, as implemented by § 157.7(b) of the regulations under the Act, for a certificate of public convenience and necessity authorizing the construction during the calendar year 1967, and the operation of gas-purchase facilities to enable Applicant to attach to its Northwest Division System natural gas which will be purchased from authorized independent producers or similar sellers, all as more fully set forth in the application which is on file with the Commission and open to public inspection.

The purpose of this budget-type application is to augment Applicant's ability to act with reasonable dispatch in contracting for and attaching to its Northwest Division System new or expanded supplies of natural gas in various producing areas generally coextensive with said system. Applicant states that in consideration of the forthcoming divestiture of its Northwest Division facilities to Northwest Pipeline Corp. (Northwest) as ordered by the U.S. Supreme Court, the budget-type authorization sought is intended to encompass and be applicable to only those facilities and activities of Applicant's Northwest Division System. Upon divestiture of such system to Northwest, such authorization is also intended by Applicant to be applicable, upon appropriate order of the Commission, to Northwest.

The total cost of the proposed facilities will not exceed a maximum of $500,000 and no single project will exceed a cost of $125,000.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington, D.C. 20426, in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) and the regulations under the Natural Gas Act (§ 157.10) on or before October 14, 1966.

Take further notice that, pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act and the Commission's rules of practice and procedure, a hearing will be held without further notice before the Commission on this application if no protest or petition to intervene is filed within the time required herein, if the Commission on its own review of the matter finds that a grant of the certificate is required by the public convenience and necessity. If a protest or petition for leave to intervene is timely filed, or if the Commission on its own motion believes that a formal hearing is required, further notice of such hearing will be duly given.

Under the procedure herein provided for, unless otherwise advised, it will be unnecessary for Applicant to appear or be represented at the hearing.

JOSEPH H. GUTRIDE,
Secretary.

[F.R. Doc. 66-10428; Filed, Sept. 22, 1966; 8:46 a.m.]

SMALL BUSINESS ADMINISTRATION

[Declaration of Disaster Area 588]

ARIZONA

Declaration of Disaster Area

Whereas, it has been reported that during the month of September 1966, because of the effects of certain disasters, damage resulted to residences and business property located in Maricopa County in the State of Arizona;

Whereas, the Small Business Administration has investigated and has re-

ceived other reports of investigations of conditions in the area affected;

Whereas, after reading and evaluating reports of such conditions, I find that the conditions in such area constitute a catastrophe within the purview of the Small Business Act, as amended.

Now, therefore, as Assistant Administrator of the Small Business Administration, I hereby determine that:

1. Applications for disaster loans under the provisions of section 7(b)(1) of the Small Business Act, as amended, may be received and considered by the Office below indicated from persons or firms whose property, situated in the aforesaid County and areas adjacent thereto, suffered damage or destruction resulting from floods and accompanying conditions occurring on or about September 13, 1966.

OFFICE

Small Business Administration Regional Office, 2727 North Central Avenue, Phoenix, Ariz. 85004.

2. Applications for disaster loans under the authority of this Declaration will not be accepted subsequent to March 31, 1967.

Dated: September 14, 1966.

WILLIAM P. TURPIN,
Assistant Administrator for Administration.

[F.R. Doc. 66-10422; Filed, Sept. 22, 1966; 8:46 a.m.]

INTERSTATE COMMERCE COMMISSION

[Notice 256]

MOTOR CARRIER TEMPORARY AUTHORITY APPLICATIONS

SEPTEMBER 20, 1966.

The following are notices of filing of applications for temporary authority under section 210a(a) of the Interstate Commerce Act provided for under the new rules in Ex Parte No. MC 67 (49 CFR Part 240) published in the FEDERAL REGISTER, issue of April 27, 1965, effective July 1, 1965. These rules provide that protests to the granting of an application must be filed with the field official named in the FEDERAL REGISTER publication, within 15 calendar days after the date notice of the filing of the application is published in the FEDERAL REGISTER. One copy of such protests must be served on the applicant, or its authorized representative, if any, and the protests must certify that such service has been made. The protest must be specific as to the service which such protestant can and will offer, and must consist of a signed original and six copies.

A copy of the application is on file, and can be examined, at the Office of the Secretary, Interstate Commerce Commission, Washington, D.C., and also in the field office to which protests are to be transmitted.

MOTOR CARRIERS OF PROPERTY

No. MC 46234 (Sub-No. 1 TA), filed September 16, 1966. Applicant: TOP-HAT TRUCKING, INC., 400 Grace Street, Secaucus, N.J. 07094. Applicant's representative: William D. Traub, 10 East 40th Street, New York, N.Y. 10016. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Advertising matter or displays, bath crystals or salts, brushes, candles, glass bottles, lipstick cases, chipboard cartons, combs, cutlery, printed cards, forms and labels, cotton pads, perfumery, plastic articles, sachet or toilet powder, shampoo and soap, solvents, toilet cases and toilet preparations.* From Edison, N.J., to Secaucus, N.J., for movement beyond in interstate commerce for 150 days. Supporting shipper: Revlon, Route 27 and Talmadge Road, Edison, N.J. Send protests to: Walter J. Grossmann, District Supervisor, Interstate Commerce Commission, Bureau of Operations and Compliance, 1060 Broad Street, Room 363, Newark, N.J. 07102.

No. MC 116273 (Sub-No. 76 TA), filed September 16, 1966. Applicant: D&L TRANSPORT, INC., 3800 South Laramie Avenue, Cicero, Ill. 60650. Applicant's representative: Robert G. Paluch (same address as above). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Silica gel catalyst and processed clay*, in bulk, in tank or hopper type vehicles, from Chicago, Ill., to El Dorado, Ark., Indianapolis, East Chicago, and Mount Vernon, Ind., McPherson, El Dorado, Arkansas City, Coffeyville, and Phillipsburg, Kans., Louisville and Catlettsburg, Ky., Norco, Meraux and Baton Rouge, La., Muskegon, Detroit, and Alma, Mich., St. Paul Park and Pine Bend, Minn., Pascagoula, Miss., Sugar Creek, Mo., Buffalo and North Tonawanda, N.Y., and Canton, Toledo, and Lima, Ohio, for 180 days. Supporting shipper: Nalco Chemical Co., 6216 West 66th Place, Chicago, Ill. 60638. Send protests to: Raymond E. Mauk, District Supervisor, Interstate Commerce Commission, Bureau of Operations and Compliance, 1086 U.S. Courthouse and Federal Office Building, 219 South Dearborn Street, Chicago, Ill. 60604.

No. MC 123075 (Sub-No. 16 TA), filed September 16, 1966. Applicant: HARVEY D. SHUPE, HOWARD YOST, AND CHARLES MYLANDER, a partnership, SHUPE & YOST, North U.S. 85 Bypass, Post Office Box 1123, Greeley, Colo. 80631. Applicant's representative: Michael T. Corcoran, 1360 Locust Street, Denver, Colo. 80220. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Animal and poultry feed, and animal and poultry feed ingredients and supplements* (except liquid feed in tank trucks from the plantsite of Farmers Marketing Association at Denver, Colo., to points in Wyoming, for 180 days. Supporting shipper: Farmers Marketing Association, 4545 Madison Street, Denver, Colo. 80216. Send protests to: Luther H. Oldham, District Supervisor, Interstate Commerce Commission, Bureau of Operations and Compliance, 2022 Federal Building, 1961 Stout Street, Denver, Colo. 80202.

No. MC 127093 (Sub-No. 4 TA), filed September 16, 1966. Applicant: BASIL J. SMEESTER AND JOSEPH G. SMEESTER, a partnership, doing business as SMEESTER BROTHERS TRUCKING, 1330 South Jackson, Iron Mountain, Mich. 49801. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Building materials* (not including lumber or bulk commodities) (1) *Gypsum and gypsum products and materials and supplies used in the installation or distribution thereto;* (2) *board, building, wall, and/or insulating, and parts, materials and accessories incidental thereto;* (3) *manufactured and/or composition boards, and parts, materials and accessories incidental thereto;* and (4) *roofing and/or insulating materials, and parts and accessories incidental thereto*, from the plantsite of Celotex Corp., at or near Fort Dodge, Iowa, to points in Kansas; and (5) *materials and supplies used in manufacture of items specified in above subparagraphs and refused, rejected or damaged shipments* on return, for 150 days. Supporting shipper: William A. Brock, supervisor of truck transportation, the Celotex Corp., 120 North Florida Avenue, Tampa, Fla. 33602. Send protests to: C. R. Flemming, District Supervisor, Bureau of Operations and Compliance, Interstate Commerce Commission, 221 Federal Building, Lansing, Mich. 48933.

No. MC 127777 (Sub-No. 10 TA), filed September 16, 1966. Applicant: MOBILE HOME EXPRESS, INC., Post Office Box 253, Oak Glen Station, 18503 South Torrence Avenue, Lansing, Ill. 60438. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Mobile classrooms* by towaway or truckaway method, from Carlisle, Ind., to points in Illinois, Michigan, Minnesota, and Wisconsin, for 150 days. Supporting shipper: Mid-West Corp., Carlisle, Ind. Send protests to: Charles J. Kudelka, District Supervisor, Bureau of Operations and Compliance, Interstate Commerce Commission, Room 1086, U.S. Courthouse and Federal Office Building, 219 South Dearborn Street, Chicago, Ill. 60604.

No. MC 128587 TA, filed September 16, 1966. Applicant: JOSEPH EDGAR CURTIN, doing business as CURTIN'S AIRFREIGHT, 825 Las Gallinas, Post Office Box 4084, San Rafael, Calif. 94903. Applicant's representative: E. H. Griffiths, 451 Turk Street, Room 23, San Francisco, Calif. 94102. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *General commodities*, all kinds (except commodities of unusual value, class A and B explosives, household goods as defined by the Commission in 17 MCC 467, commodities in bulk, commodities requiring special equipment, and commodities injurious or contaminating to other lading). Between San Francisco International Airport, San

Francisco, Calif., on the one hand, and, on the other, points in Marin and Sonoma Counties, Calif., on traffic having a prior or subsequent movement by air carrier, for 150 days. Supporting shippers: Reitz Manufacturing Co., Post Office Box 847, Santa Rosa, Calif., Fairchild Semiconductor, 4300 Redwood Highway, San Rafael, Calif., G.T.I. Components, 1309 Dynamic Street, Petaluma, Calif. 94952, Nichols Turkey Breeding Farms Inc., 865 West Napa Street, Sonoma, Calif. 95476, Optical Coating Laboratory Inc., 2789 Giffin Avenue, Santa Rosa, Calif. 95401. Send protests to: Howard O. Gaston, District Supervisor, Interstate Commerce Commission, Bureau of Operations and Compliance, 450 Golden Gate Avenue, Room 13001, San Francisco, Calif. 94102.

No. MC 128588 TA, filed September 16, 1966. Applicant: NORRIS TRANSFER & STORAGE COMPANY, INC., 1109 West Memorial Boulevard, Lakeland, Fla. Applicant's representative: M. Craig Massey, 223 South Florida Avenue, Drawer J, Lakeland, Fla. 33802. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Telephone equipment, materials, and supplies* having a prior or subsequent movement in interstate commerce, between Lakeland, Fla., and points in Polk, Hillsborough, and Highlands Counties, Fla., for 180 days. Supporting shipper: Western Electric Co., Inc., 3300 Lexington Road, Winston-Salem, N.C. Send protests to: Joseph B. Teichert, District Supervisor, Interstate Commerce Commission, Bureau of Operations and Compliance, Room 1621, 51 Southwest First Avenue, Miami, Fla. 33130.

By the Commission.

[SEAL] H. NEIL GARSON, *Secretary.*

[F.R. Doc. 66-10437; Filed, Sept. 22, 1966; 8:47 a.m.]

[Notice 1416]

MOTOR CARRIER TRANSFER PROCEEDINGS

SEPTEMBER 20, 1966.

Synopses of orders entered pursuant to section 212(b) of the Interstate Commerce Act, and rules and regulations prescribed thereunder (49 CFR Part 179), appear below:

As provided in the Commission's special rules of practice any interested person may file a petition seeking reconsideration of the following numbered proceedings within 20 days from the date of publication of this notice. Pursuant to section 17(8) of the Interstate Commerce Act, the filing of such a petition will postpone the effective date of the order in that proceeding pending its disposition. The matters relied upon by petitioners must be specified in their petitions with particularity.

No. MC-FC-68892. By order of September 19, 1966, the Transfer Board approved the transfer to Reeder's, Inc., Modena, Pa., of certificates in Nos. MC-109850 and MC-109850 (Sub-No. 1), issued December 22, 1954 and September 9, 1955, respectively, to Frederick J. Whalen, doing business as Pen-Del Coach Lines, Norristown, Pa., authorizing the transportation of: Passengers and their baggage, over regular routes, between Coatesville, Pa., and Claymont, Del., serving all intermediate points in Pennsylvania restricted to traffic moving to or from Claymont, Del.; and passengers and their baggage, in special operations, in round trip sightseeing or pleasure tours, over irregular routes, beginning and ending in Coatesville, Pa., and extending to points in Maine, New Hampshire, Vermont, Massachusetts, Connecticut, Rhode Island, New York, New Jersey, Delaware, Virginia, North Carolina, South Carolina, Georgia, Florida, Louisiana, Maryland, Ohio, West Virginia, Tennessee, Kentucky, Alabama, Mississippi, and the District of Columbia. Robert H. Griswold, Post Office Box 432, Harrisburg, Pa., attorney for applicants.

No. MC-FC-69016. By order of September 19, 1966, the Transfer Board approved the transfer to Hochstetler & Sons, Inc., Topeka, Ind., of permits in Nos. MC-119510, MC-119510 (Sub-No. 2), and MC-119510 (Sub-No. 3), issued September 22, 1960, January 11, 1963, and October 5, 1965, respectively, to Omer J. Hochstetler, or his estate, Topeka, Ind., authorizing the transportation of: Fertilizer and fertilizer materials, dry, in bulk and in containers, between Cairo, Ohio, on the one hand, and, on the other, points in specified Indiana counties; agricultural limestone, crushed limestone, and crushed limestone screenings, in bulk, from Maple Grove, Ohio, to points in specified Indiana counties; and agricultural lime, in bulk, in dump vehicles, from Woodville, Ohio, to points in specified Indiana counties. Donald W. Smith, 511 Fidelity Building, Indianapolis, Ind. 46204, attorney for applicants.

No. MC-FC-69099. By order of September 16, 1966, the Transfer Board approved the transfer to William Earnhardt, doing business as Earnhardt Transport, Post Office Box 376, 1315 South Main Street, Salisbury, N.C., of certificates Nos. MC-114098, MC-114098 (Sub-No. 9), MC-114098 (Sub-No. 20), MC-114098 (Sub-No. 23), MC-114098 (Sub-No. 27), MC-114098 (Sub-No. 39), MC-114098 (Sub-No. 40), and MC-114098 (Sub-No. 41), issued November 13, 1961, November 29, 1962, September 5, 1962, September 6, 1962, July 2, 1963, April 10, 1963, and July 11, 1963, respectively, to Lowther Trucking Co., a corporation, Post Office Box 2115, 521 Penman Street, Charlotte, N.C.; MC-114098 (Sub-No. 9) authorizes the transportation of hardboard sheets and boards, from Catawba, S.C., and points within 5 miles thereof, to Dover, Del., Fairmont, W. Va., and points in Arkansas, Louisiana, Mississippi, Missouri, and Tennessee, and, except for points in certain commercial zones, points in Virginia, Pennsylvania, Kentucky, Maryland, New Jersey, and New York; MC-114098 (Sub-No. 20) authorizes cold finished steel bars, steel pipe, and steel tubing, from the plantsites of the Columbia Steel & Shafting Co., Inc., and Summerill Tubing Co., in Carnegie, Pa., to points in North Carolina and South Carolina; MC-114098 (Sub-No. 23) authorizes composition boards and sheets, from Black Mountain, N.C., to points in South Carolina, Tennessee, Alabama, Florida, Georgia, Kentucky, New York (excluding points within the New York, N.Y., commercial zone), and points in Pennsylvania; MC-114098 (Sub-No. 27) authorizes cast iron pipe and fittings, from Charlotte, N.C., to points in Pennsylvania on and west of U.S. Highway 219; MC-114098 (Sub-No. 39) authorizes hardboard, from Conway, N.C., and points within 10 miles thereof, to points in Iowa, Arkansas (except Benton, Ark.), Illinois, Kansas, Kentucky, Louisiana, Michigan, Minnesota, Missouri, Mississippi, Oklahoma, Texas (except Houston, Tex.), Wisconsin, and that part of Tennessee on and west of U.S. Highway 25E; MC-114098 (Sub-No. 40) authorizes plywood and lumber panels, beams, and plate roofs, and incidental steel connectors, from Hartford, Conn., to points in Delaware, Tennessee, that part of New York on and west of Interstate Highway 81; that part of New Jersey on and east of the New Jersey Turnpike, that part of Pennsylvania on and west of U.S. Highway 15, that part of Maryland east of U.S. Highway 15, that part of Virginia east of U.S. Highway 15, and the District of Columbia; and, MC-114098 (Sub-No. 41) authorizes steel racks and accessories and fittings, from East Hartford, Conn., to points in Alabama, Arizona, Arkansas, California, Colorado, Delaware, Idaho, Iowa, Louisiana, Maryland, Mississippi, Missouri, Nevada, New Mexico, North Carolina, Oklahoma, Oregon, Tennessee, Texas, Utah, Washington, West Virginia, Wyoming, that part of Pennsylvania west of U.S. Highway 15, and the District of Columbia; all transportation involved is over irregular routes.

[SEAL] H. NEIL GARSON, *Secretary.*

[F.R. Doc. 66-10438; Filed, Sept. 22, 1966; 8:47 a.m.]

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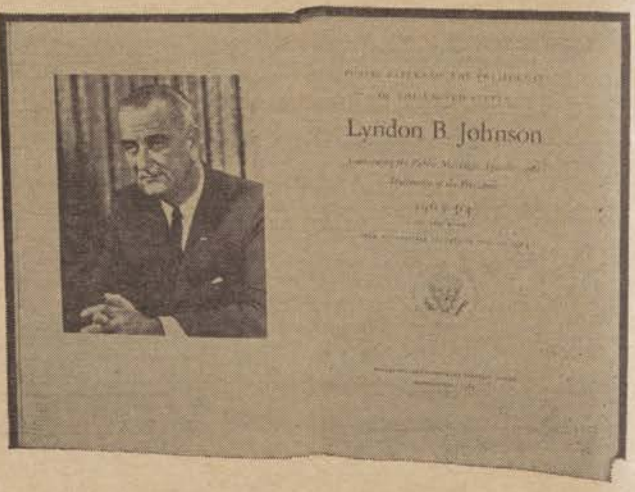
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